
REQUEST FOR PROPOSAL (RFP)

FOR

“Appointment of an Agency for providing Integrated omni-channel Complaint Handling System (CHS) , Field tracking system and Condition monitoring solution for DHBVN”

BID NO. RFP-03/CHS&FTS/2022
E-Tender No. 2022_HBC_244483_1
Single Stage – Double Envelope Selection Procedure
The last date for submission of RFP is 21 /11/ 2022 (Up to 13:00 Hrs.)

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DAKSHIN HARYANA BIJLI VITRAN NIGAM

(A Govt. of Haryana Undertaking)

NOTICE INVITING TENDERS

(Through e-tendering)

E-tender is invited in two parts (Part-I, Technical Bid & Part-II, Price Bid), from the firms, by the Chief Technology Officer, DHBVN, Hisar as per following details:

NIT No./ date	Brief Scope of work	Earnest Money deposit (In Rs.)	Tender documents Fees including GST (Non-refundable) (In Rs.)	E-Service Fee including GST (Non-refundable) (In Rs.)
RFP-03/CHS&FTS/2022 dated 21/10/2022	Appointment of an Agency for providing Integrated omni-channel Complaint Handling System (CHS) and Field tracking system for DHBVN	5,00,000/-	5900/-	1180/-

1.	Date of Starting of e-Tender for submission of on line Techno- Commercial Bid and price Bid at https://etenders.hry.nic.in	28.10.2022 at 11:00 Hours
2.	Pre-bid meeting	04.11.2022
3.	Date of closing of online e-tender for submission of Techno-Commercial Bid & Price Bid on web portal	21.11.2022 at 13:00 Hours
4.	Opening date of part-1 of proposal on web portal	23.11.2022 at 15:30 Hours

- 1) Only those tenders will be considered who fulfill the **Pre-Qualification Conditions** mentioned in the tender documents.
- 2) Only those tenders shall be considered who deposit the earnest money and tender cost & E-Service Fee by due date.
3. Information Regarding Payment of e-service fees, Tender Document fee & EMD Fee.
 - i. The Bidders can download the tender documents from the Portal: <https://etenders.hry.nic.in>. The Bidders shall have to pay for the e-service fees, Tender documents & EMD fees online by using the service of secure electronic payment gateway. The secure electronic payments gateway is an online interface between suppliers and online payment authorization networks. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ suppliers online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT.
 - ii. If the tenders are cancelled or recalled on any grounds, the e-service fees & tender document fees will not be refunded to the agency.
 - iii. The detailed procedure/instructions to bid on Electronic Tendering System are mentioned against clause no.36 of ITB section-II.
- iv. **For any clarification regarding bid preparation and bid submission, please contact:**
O/o. DS&D Haryana, SCO – 09, IInd Floor, Sector – 16, Panchkula – 134108
E - mail: Support-eproc@nic.in
The Tenderers can submit their tender documents (Online) as per the dates mentioned above.
Corrigendum, if any would be published online on the website.

**Chief Technology officer,
DHBVN, Hisar.**

TABLE OF CONTENTS

Sr. NO.	DESCRIPTION	PAGE NO.
SECTION-1: Instruction to the Bidder		
1.0	INTRODUCTION	5
2.0	SCOPE OF WORK	6
3.0	ELIGIBILITY CRITERIA	21
4.0	PERIOD OF ENGAGEMENT	22
5.0	EARNEST MONEY DEPOSIT (EMD)	22
6.0	TAXATION	23
7.0	CONTENTS OF BID DOCUMENTS	23
8.0	SUBMISSION OF BID	23
9.0	SIGNATURE OF BID	25
10.0	BID OPENING AND EVALUATION OF PROPOSALS	25
11.0	NOTIFICATION OF AWARD	27
12.0	SIGNING OF CONTRACT	28
13.0	VALIDITY OF BID	28
14.0	PRICE VARIATION	28
15.0	TERMS OF PAYMENT	29
16.0	CONTRACT PERFORMANCE GUARANTEE (CPG)	31
17.0	PROJECT TIMELINES	32
18.0	PENALTY FOR DELAY IN COMPLETION	33
19.0	SLA AND PENALTY	33
20.0	DELAY IN THE VENDOR'S PERFORMANCE	36
21.0	BLACKLISTING OF THE FIRMS	36
22.0	OTHER TERMS & CONDITIONS	37
SECTION -2 : BID FORMS AND PROFORMA		
FORM 1	COVERING LETTER	40
FORM 2	EXPERIENCE OF ORGANISATION	43
FORM 3	SCHEDULE OF PRICE BID	44
FORM 4	THE PROPOSED METHODOLOGY AND WORK PLAN	46
FORM 5	PROFORMA FOR BANK GUARANTEE FOR CONTRACT PERFORMANCE	47
FORM 6	SPECIAL INSTRUCTION TO BIDDERS FOR E-TENDERING	49
FORM 7	PROFORMA OF AGREEMENT	51
FORM 8	NO OWNERSHIP CHANGE CERTIFICATE	55
FORM 9	NO BLACKLISTING NO LITIGATION STATUS	56
SECTION-3: CONDITIONS OF CONTRACT		
	CONTRACT FOR SERVICES	57

SECTION -1

INSTRUCTION TO BIDDER

INSTRUCTIONS TO BIDDERS

1 Introduction

The power sector reforms in the state of Haryana were initiated by the Government of Haryana (GoH) under the Haryana Reforms Act 1998 on 10th March 1998. The Haryana Electricity Regulatory Commission (HERC) was formed on 16th August 1998 and the Haryana State Electricity Board (HSEB) was unbundled in to two independent company's viz. Haryana Power Generation Corporation Limited (HPGCL), to undertake generation of electricity, and Haryana Vidyut Prasaran Nigam Limited (HVPNL) to undertake transmission, distribution and retail supply of electricity in the state of Haryana.

Subsequently in July 1999, two distribution companies viz. Uttar Haryana Bijli Vitran Nigam Ltd. (UHBVNL) and Dakshin Haryana Bijli Vitran Nigam Ltd. (DHBVNL) were separated from HVPNL to exclusively undertake function of distribution and retail supply of electricity in their respective geographic areas.

Electricity Sector organizations in Haryana

HERC	Haryana Electricity Regulatory Commission	http://www.herc.nic.in
HPGCL	Haryana Power Generation Corporation Limited	http://hpgcl.gov.in
HVPNL	Haryana Vidyut Prasaran Nigam Limited	http://www.hvpn.gov.in
DHBVN	Dakshin Haryana Bijli Vitran Nigam Ltd	http://www.dhbvn.org.in
UHBVN	Uttar Haryana Bijli Vitran Nigam Ltd	http://www.uhbvn.org.in

1.1. Company Profile

Sr. no.	Name of Circle	Circle	No. of Divisions Total Sanctioned Division	No. of S/Division Total sanctioned S/Division	No. of consumer
1	Hisar	1	5	20	392428
2	Fatehabad	1	4	15	267485
3	Sirsa	1	5	20	361122
4	Bhiwani	1	5	20	400301
5	Jind	1	5	19	327793
6	Faridabad	1	8	30	584732
7	Palwal	1	6	19	347510
8	Gurugram-1	1	4	14	307771
9	Gurugram-2	1	4	13	273543
10.	Rewari	1	4	15	291071
11.	Narnaul	1	4	13	253879
TOTAL		11	54	198	3807655

2 SCOPE OF WORK

Scope of the work includes design, development, deployment and operations support for integrated omni-channel Complaint Handling System (CHS), Field tracking system and Condition monitoring solution. Key scope deliverables are:

- 2.1. CHS
 - 2.2. Fault Management
 - 2.3. Consumer Feedback Module
 - 2.4. Quality Check Module
 - 2.5. Field tracking system
 - 2.6. Reporting framework
 - 2.7. Social media platforms integration
 - 2.8. Condition Monitoring Module
 - 2.9. AI Based Chatbot
 - 2.10. Integrations
 - 2.11. Cloud Services
 - 2.12. Data Management
 - 2.13. Resource Deployment
- Detailed specifications are as under:

2.1 Complaint Handling System (CHS)

CHS shall act as a single central system for all interactions with the consumers for their complaints and queries. It shall have all possible modes for consumer interaction inbuilt into the system including on-call, web portal, SMS, WhatsApp, Facebook, Twitter, chatbot, email etc.

2.1.1. Unified Omni-channel communication

- i. Phone call through IVRS – IVRS solution, CTI and APIs for integration will be provided by Call center vendor of DHBVN. Bidder shall be responsible for integrating with existing & future IVRS and CTI. Customers will be able to directly register their complaints without any human intervention through computerized IVRS. The unique complaint number will be immediately given to the caller by the IVRS, followed by confirmation through SMS/ WhatsApp. Various services which IVRS can offer includes but not limited to are as follows:
 - Get the bill information
 - Get the status of last complaint
 - check the outage information based on consumer account no & registered mobile number
- ii. WhatsApp and SMS – Customer can register complaints and check status using SMS and WhatsApp. Bidder shall define short codes for various services and consumer can send a defined messaged using short codes to register complaints and get enquires. SMS and WhatsApp Gateway shall be provided by DHBVN. There should be provision to broadcast predefined and prescheduled messages to consumers.
- iii. DHBVN website- bidder shall design and develop a portal for complaint registration and enquiries related to power supply, billing, metering etc. In case any payment is to be taken, option should be there to redirect consumer to the DHBVN's existing payment portal. Link of this portal shall be provided on the official website of DHBVN. This portal will replace existing CGRS portal.
- iv. Call Center Agents – Call center agents shall have access to CHS to register complaints & enquires. Agent

shall forward the same to the respective field staff/sub-division of DHBVN for resolution (as per the complaint handling process defined by DHBVN & subject to amendment from time to time). The latest status of all the registered complaints should also be available on the IVRS.

- v. Decentralized Bijli Suvidha Kendras (BSKs) – DHBVN has Circle/Town Level BSKs where consumers can also lodge complaints in central CRM.
- vi. Email - Customer can lodge its complaint using designated email address. Email shall be integrated with the CRM. All emails on the given email ID should be available in the CHS and there should be provision of replying to the emails directly from the CHS. DHBVN shall provide email exchange and email id.
- vii. Missed call: CHS shall be integrated with Telephony system of Call center vendor via CTI. All the missed and dropped calls shall be forwarded to the CHS and CHS should show the list of such call received so that agent can call those numbers. Once the agent records the complaint against the missed number that should be removed from the list of the calls to be made by agent. As soon as missed call / dropped call information is received in CHS, a SMS/ WhatsApp should be sent to consumer detailing multiple modes of complaint registration and assuring that an agent will call back as soon as possible.

2.1.2. Lifecycle management of complaints of consumers

Complete complaint life cycle management from registration to resolution

- a. One stop solution: integrated solution for complaints coming from multiple channels like Call, SMS, Social Media, on-site visit to offices and sub-stations
- b. 4 step process of complaint lifecycle



- 1 All Complaints shall be registered at a central portal.
- 2 Metering and billing related complaints shall be forwarded to CBO/concerned subdivision for necessary action. Supply related complaints shall be monitored and allocated to FRT by respective BSK.
- 3 BSK shall be responsible for complaint monitoring. All other complaints shall be forwarded to concerned officer as per defined workflow. System should prompt BSK to the best suited FRT based on various factors like current location, availability, skill set etc. CHS shall also be able to directly assign to complaint to the FRT on the basis of logic provided by DHBVN.
- 4 100% consumer complaint feedback shall be recorded in the system

Workflow manager module will define the life cycle of complaint covering: -

- To whom the complaints will be initially assigned based on complaint type and other parameters like location and administrative hierarchy
- Various stages of the complaints shall be defined for each type and level

- For every complaint type, when to escalate the complaint and to whom to escalate. In case of automatic escalation, workflow will assign the task to the scheduler to escalate complaint at a given time.
- Who can access the complaints and who have the rights to close the complaints
- How to take up the feedback upon the closure of the complaints.

Workflow manager shall be linked to the notification builder to send the notification on life cycle stage change. It shall have provision to define step by step timelines or overall timelines for any complaint type. All workflows and timelines shall be configurable from front end without changing source code.

Workflow manager will have an auto-escalation sub-module where time for escalation of the complaints will be defined.

Auto-escalation shall be the configurable feature of the system so that it shall be able to cater to the following without any code change:

- Creation of escalation schedule for any new complaint type or sub-type
- Configuration of different escalation time frame for each complaint type
- Option to change the escalation time frame.
- Option to change the user assignment on the escalation.

2.1.3. Scheduler

Soon after the registration of the complaints, the scheduler module will manage the life cycle of the complaint till closure. It is envisaged to be the back bone of the system and shall control the flow of the complaints to resolution teams by assigning complaints to the concerned team. Scheduler will create task/to-do list for the customer care agents like to inform the FRT, take confirmation about attending the complaint, follow up call for the monitoring purpose of resolution of complaints within the time frame. Scheduler will create list for automated calls of the closed complaints and transfer the list to telephony system of customer care vendor via CTI which will make automated outbound call to take feedback from consumer. Scheduler will also create a task/to-do list for the calls to be made to the consumers who have reported dissatisfaction with the resolution of their complaints.

Following process will generally be followed

- As soon as complaint is registered, FRT and JE will be informed through SMS/Notification. System will also schedule the follow up to inform the FRT about the complaint and take confirmation about attending the complaint.
Note: - For different categories/sub-categories of complaint or nature of fault the escalation matrix shall be configurable.
- In case the complaint is registered but the FRT or JE or AE details are not available, system shall schedule a call to the concerned officers to get the required details.
- As soon as the FRT details are available, complaints shall be allocated to FRT. In case, the FRT details are not available, the complaints shall be allocated to the JE
- Auto schedule follow up call to FRT / JE/AE after scheduled time
- Auto schedule for follow up from the consumers for taking the feedback from the consumers
- Area outage follow ups, in case of delay in restoration consumer shall be intimated timely

Scheduler shall ensure that feedbacks are taken timely and prompt actions are being taken. Scheduler shall be linked to the notification builder to schedule and send the notifications (SMS/email/mobile notification)

2.1.4. Notification Manager

There shall be provision in the system to configure the scheduled notifications. There shall be the notification

- builder which shall allow the creation of the notification templates without any coding.
- Creation of SMS, WhatsApp, mobile App notification and email template
- Link the templates to
 - workflow events like complaint closure, assignment etc
 - scheduler based events like auto-escalation of complaints
 - scheduled notification at specific time. E.g. System shall be able to send the notification at a certain time to all the user with the summary of the complaints which are opened and assigned to them.

2.1.5. Contextual analytics for complaints management

As the complaints related to power distribution have a context associated with them and without the context analysis, lot of irrelevant complaints can be registered. For example, if there is an area shutdown due to breakdown at the 33 or higher KV levels, a single fault will impact thousands of consumers and all complaints should be combined to reduce duplication of the complaints. System shall intelligently identify such faults, schedule the confirmation and shall allow combining of the complaints into a single complaint but still should maintain individual ticket.

2.1.6. Enquiry module

It is proposed that to access the effectiveness of the software as well as the customer care center operations, all the interaction with the consumers shall be registered in the system. There shall be a module of the enquiry where call center agents can register the consumer enquiries and interactions which are not registered as a complaint. It shall be integrated to billing system to provide real time status to consumers. System shall have provision to define multiple categories of enquiry.

2.1.7. Complaints Re-opening provision

Provision for re-opening the complaints on basis of consumer feedback or based on DHBVN's requirement. Re-opened complaints will be examined, the feedback will be collected by the customer care center and forwarded to the higher officers.

2.1.8. Tripping/ Breakdown portal

A portal shall be developed to record all information regarding scheduled maintenance and shut downs at the feeder or sub-station level so that consumer can be provided with appropriate information when they call for outage related complaints. Primarily it shall be used by circle control room for entering the data. The system shall also be integrated with RTDAS to capture feeder ON/ OFF status and generate alerts. APIs for RTDAS integration shall be provided by DHBVN. Based on the level & area affected of tripping/breakdown/fault the intimation shall also be given to the officers of DHBVN via SMS/WhatsApp/Automatic outbound call.

In addition, the intimation shall also be broadcasted to pre-defined numbers of various RWAs, Public Administration, Public representatives, eminent citizens etc. of that area. Regular update on the status of breakdown/fault along with estimated time shall also be broadcasted.

2.1.9. Officer portals and mobile apps

CHS should have Role based Mobile apps and web portal access for the officers where they can view the pending complaints and take action on that. All the reports and real time dashboards shall be available on both web portals and mobile app. DHBVN is in process of developing its common Mobile app for consumer and officers under a separate project, in such case the proposed Mobile App as per this RFP may be discontinued and bidder shall develop APIs to integrate with Proposed common Mobile App as and when it is ready

2.2. Fault Management

Fault management module will be a backend module for CHS. It will be responsible for recording all the faults

and mapping the different type of complaints with the faults. This will be integrated with Field tracking system for timely resolution. Key features of this module are:

- Real time status of feeder or substation outage related complaints with color coding based on time lines for the call center and BSK.
- Consumer complaints shall to be grouped and tagged to a fault (if DT, 11 kV or 33 kV fault).
- Defining the faults types and sub-types and linking them with complaints types and sub-types. Complaint from consumer can be supply related and fault management system will define whether it is fuse off, under-ground cable, over-head cable, Pole broken, conductor snapping, distribution transformer related fault.
- Grouping of multiple complaints which are related to single fault or shut-down
- If the complaint flow from certain area is higher than the average call flow from that area or if the complaints from the area exceeds a predefined threshold, matter should be escalated to the concerning JE
- Generate reports of frequent failure points.

The fault management system shall record following information:

- Fault type: LT/11kV/33kV/ DT/ 33kV Substation
- Fault Details
- Restoration Time
- % variation in Actual and Allowable Time Limit
- Reason for Time variation
- Whether fault rectification done with temporary restoration
- Works are required for permanent restoration (Pole replacement, Under-ground cable fault rectification etc.)

2.3. Consumer Feedback Module

Provision to collect the feedback of all registered complaints. System shall be configurable as per the requirement such that either automatic or manual feedback shall be taken. In case of automatic feedback, bidder shall provision automatic outbound call & get feedback via IVRS, SMS or WhatsApp. Customer shall be able to give the feedback by pressing the keys on his/ her mobile. The proposed system shall be able to record all feedbacks from telephony. There should be a provision to broadcast voice message related to billing, general awareness etc to consumer via IVRS system as per requirement.

The system should have the functionality of sending OTP to the consumer/complainant for sharing with the field staff on resolution as a token of satisfactory feedback.

System will generate reports like:

- Division wise % of unsatisfied consumers
- Sub-division wise % of unsatisfied consumers
- Sub-station wise % of unsatisfied consumers
- Month on month improvement in the customer satisfaction level

2.4. Quality Check Module

System shall have provision to auto generate Quality check (QC) schedule for customer care agents with a condition to check all the agents as per the schedule. System shall also provision to generate QC enquiry of any specific agent or complaint. QC shall cover:

- Provision to upload recorded audio file(s)
- QC remarks at each stage of complaint
- Outcome of QC

2.5. Field tracking module

Field tracking module will be a backend module for CHS. It will be responsible for managing entire work force of FRT. It will enable optimal allocation of jobs and ensuring timely closures. Key Features shall be:

- Scheduling
 - Assign work based on field worker availability, work areas, skills, equipment and service Contracts
 - The system shall generate a real time dashboard of engagement of resources
 - The system shall accept cancellation of scheduled work.
 - BSK shall be able to assign priority of work to FRT.
 - The system shall treat emergency and outage types of tasks with higher priority and schedule the closest qualified FRT to be dispatched.
 - During emergencies like major storm, the system will be able to realign the FRTs such that outages having more impact can be taken on priority.
- Dispatching
 - All tasks shall be dispatched from BSKs or automatically by system as per defined workflow.
 - The dispatching module shall allow dispatching of multiple outages to a single FRT and multiple FRTs to a single outage
 - The system shall be able to track when a job has been dispatched
 - a. Acknowledged by a FRT
 - b. FRT is in route
 - c. FRT has arrived at the location
 - d. FRT has restored service
 - e. FRT has completed work.
- FRT Management
 - The system shall allow the user to view the following information:
 - a. Available FRTs
 - b. FRTs that have been dispatched to trouble events in the field.
 - c. FRTs who have no trouble events dispatched or assigned to them
 - Assigned FRTs shall receive WhatsApp/ SMS/ Mobile App notification to notify them of new complaints
 - Mobile app and web portal shall be developed for field team. And each field team member shall have the ability to view complaint assigned to them including the following minimum details
 - a. Location of the complaint/ Fault
 - b. Description of the complaint
 - c. Assigned FRT
 - d. Scheduled start time
 - e. Scheduled stop time

2.6 Reporting framework

The CHS system should have sufficient reports so that DHBVN officers and FRTs can have required information as and when available. System should have a report builder tool so that new reports can be created as and when required. Real time dashboard shall be available for timely analysis and action of the complaints. Desired reports in the system are as follows:

- Hierarchy & Complaint wise summary Report
- Date wise complaint count
- Complaint type and hierarchy wise reopen cases Summary
- Complaint type and hierarchy wise reopen cases Summary-combination
- Feedback Summary Report

- Unsatisfied Consumers Detailed Report
- Detailed Report of Theft complaints
- Transformer Damage Hierarchy wise Summary Report
- Overloading Summary
- Overloading Detailed Report
- Transformer Damage (Top 5) Substation summary Report
- Transformer Damage (Top 5) Substation Detailed Report
- Zone wise VC Report
- Complaint type wise beyond time pending Report
- Zone wise Top 5 JE Report
- Month wise Complaint Summary
- Enquiry Summary
- Financial year wise report
- Date wise complaint and enquiry summary
- Call details entry form should be available and its report
- Date wise Complaint vs call Summary
- Real-Time Report which can be downloaded with filters like Type of Complaints, Date(From-To), Time(From-To) and Status(Closed/Pending Within/Pending Beyond).
- Detail and Summary reports of Complaints that will go beyond in x hours.
- Report for Messages sent using SMS Gateway.
- Summary Report (up to necessary level like Division, Subdivision, Substation etc).
- Detail Report for Pending Complaints.
- Daily / weekly/ monthly/ YTD basis complaints summary and detailed reports for theft and bribe cases
- Reports for Test divisions for meter related cases

Comparative analysis and trend analysis on basis of correlated factors

Analytical reports shall be generated so that the senior officers can easily and efficiently manage the escalations. Following reports will be generated:

- Division/ Sub division wise number of escalated complaints which are pending
- Division/ Sub division wise escalated complaints category wise
- Division/ Sub division wise average time for closing of the escalated complaints
- Percentage of escalated complaints which were re-opened.
- Number of complaints pending for a week and for more than months

2.7. Social media platforms integration

For social media, following issues and challenges has been observed within DHBVN:

- I. Presence on such platforms are difficult to monitor and there is a chance that few of the messages are not responded
- II. Complaint received on social accounts are not managed nor replied by standard response
- III. Escalation mechanism is not standardized.
- IV. Time for resolution of complaints is not pre-defined.
- V. Closing communication loop is not defined. Feedback is not observed.
- VI. The records of posts/twitter complaints are not tracked properly or tracked using spreadsheets
- VII. Very Less reports on Social Media Analytics. Dedicated tools are not used for analytics purpose.
- VIII. Minimal training, no targets for daily/weekly tweets/posts

2.7.1. Twitter Handle & Facebook

It is proposed to handle the complaints received through the twitter and Facebook. It is proposed that key officers will have twitter handle in the name of position and consumers can interact with the officers on the twitter platform. On transfer of officer, the twitter handle has to be transferred to incumbent officer.

Further all the tweets related to the complaints shall be handled through the application in following manner:

- i. Twitter and facebook shall be integrated and all messages shall be automatically collected and shown on CHS module to agent.
- ii. The Agent shall study the post/ tweet and on actionable items may ask for additional details like consumer number, area, mobile number etc using CHS interface. The consumer may provide such details on public domain or on inbox. There should be provision in the system to regulate the responses on the social media platform by adding verification & approval hierarchy for the social media responses. However, every post/tweet/message on the DHBVN account/handle on social media platform shall be collected and shown on CHS module to agent. There should be provision in the solution to categorize it into different categories & sub-categories on the basis of DHBVN requirement from time to time.
- iii. System shall to capture the consumer information and if there is any pending information, the call centre executive can take on mobile call
- iv. The complaint number has to be generated and then standard process to be adopted till resolution. The system should have system to record source of complaint
- v. Once the complaint is resolved, standard reply must go back on twitter on same twitter handle stating the completion of complaint resolution.
- vi. The status of update shall be posted on the twitter accounts through the system only.
- vii. Repeated complaints by a consumer or any social media handle or on any DT or of any type on feeder or related to corruption / delay by any official should also be escalated
- viii. Bidder shall be required to integrate with other social media platforms in future. The cost, if any, charged by the said social media platform for integration and continuous subscription shall be reimbursed by DHBVN on actual basis.

2.8. Condition Monitoring Module

This module covers condition monitoring of critical assets- Substation and DTs. It shall cover the following:

- a) Asset utilization Module
- b) Patrolling Module

2.8.1. Asset Utilization Module

- DHBVN collects meter data from substation feeders meters and DTs regularly. System shall have provision to receive such meter data from AMR/ AMI, file transfer or file uploader.
- Agency should do the data analysis to ascertain health of the equipment by analyzing load imbalancing, over loading, power factor issue and other parameters
- Agency should build a model which can help is identifying assets which might fail and assist in timely maintenance

2.8.2. Patrolling Module

- Minor Network issues like open circuit box, sparking, sagging of conductor, loose conductor, physical damage of asset affect overall performance of the system and may also lead to accidents with consumers at large.
- Bidder shall develop an android based mobile app to capture all such issues. Any DHBVN officer

or vendor shall be able to report cases.

- Such cases shall be called as “Network Tickets” and shall be assigned to specific officers based on location and asset.
- System shall have provision to capture photo of asset or nearby area also.
- Bidder should build a model which can help in identifying assets which might fail and assist in timely maintenance.

2.9. AI Based Chatbot

- Text Chatbot shall be available on WhatsApp and Web Application
- Bidder shall Design and implement cloud based Chatbot solution covering:
 - Answering customer queries related to General Information, Tracking the Status of an Application, Receipts, Bill, Payments
 - Registration of Complaints
 - Updation of registered Mobile Number
- The Chatbot shall support English & Hindi language
- The Chatbot shall be seamlessly integrable with common monitoring and analysis module passing on complete information. the Analytics module shall provide integration mechanisms like API or direct connection
- Chatbot shall be able to generate task for Agent call back if asked by user

2.10. Integrations

System needs to be integrated with other systems running in DHBVN. Offer solution by bidder should be flexible for integration with future solutions that may be deployed by DHBVN. All APIs, web services, integration documents and support from respective vendors/ departments of systems will be provided by DHBVN. Following systems needs to be integrated

- Milestone 1
 - RT-DAS: This will provide the real time data of the outages on the feeders
 - Saral Portal
 - AAS Portal
- Milestone 3
 - AMR/AMI systems: This provide the real time data of the AMR/AMI system installed in DHBVN
 - CCB/Billing system: To fetch the consumer information based on account ID
 - XYZ Portal
 - New connection portal
 - Solar Net Metering Portal
 - Other Portals as mandated by GOH, GOI from time to time.

2.11. Cloud Services

The solution shall be hosted on MEITY empaneled cloud with average monthly uptime of 99.9%. In order to curb system failures and keep both planned and unplanned downtimes at bay, the use of a High Availability (HA) architecture is envisaged. The system shall be highly available and its parts should be well designed and rigorously tested. The architecture should be able to meet the desired levels of security, scalability, performance and availability. Following best practices shall be adopted for high availability.

2.11.1 Cyber Security Policy

IT security is of critical importance to the organization and for establishing a robust and reliable Cyber Security System, the bidder need to build, configure, and manage a comprehensive IT security solution in line with the IT Cyber Security Policy of GoH/GoI/CERT-IN Distribution with the security components asked in this RFP.

Bidder shall design & develop a cyber security policy document and implementation framework for the organization in conformity to the IT Cyber Security Policy guidelines of GoH/GoI/CERT-In Distribution and Information Technology Act 2000 or any such statute prevalent under the relevant governing laws. Bidder shall update the security policies and infrastructure as per CERT-IN guidelines and directions.

System Security Audit shall involve comprehensive audit of the online IT systems by the CERT-IN Empaneled auditors as per the period defined under the IT security policy or it should be mandatorily done on yearly basis, as per directions of DHBVN.

The Bidder as well as Service Providers, Suppliers/Vendors, Service Providers, Software Designers engaged in the project shall be subjected to CEA (Cyber Security in Power Sector) Regulation, 2021. Mandatory Requirements shall be read in conjunction with the provisions of IT Act 2000 and Amendments thereof and Cyber Security Audit mandated by CERT-In.

2.11.2 Data Backups, Recovery and Replication

The system shall have a good data protection plan that protects against system failure is a sound backup and recovery strategy. Data should be stored with proper backups, replication or the ability to recreate the data. The platform shall create a full backup of the primary database automatically.

2.11.3 Network Load Balancing

Load balancing shall be used for increasing the availability of critical web-based applications. When server failure instances are detected, they shall be seamlessly replaced when the traffic is automatically redistributed to servers that are still running. It shall facilitates higher levels of fault tolerance within applications.

2.11.4 Fail Over Solutions

High availability architecture shall consists of a set of loosely coupled servers which have failover capabilities. Failover system shall be available in which the functions of a system component shall work as secondary system in the event that the primary one goes offline, either due to failure or planned down time. A "hot failover" shall be supported in which when all the servers are running simultaneously (primary and secondary) and the load is directed entirely towards a single server at any given time.

2.11.5 Plan for failure

Despite the fact that applying the best practices for high availability is essentially planning for failure; there are other actions an organization can take to increase their preparedness in the event of a system failure leading to downtime.

2.12. Data Management

The accurate operation of envisaged system depends heavily on the correctness of the data. Data size will increase and may change frequently therefore proper data management will be done by the bidder. Data management plan has to be submitted and process needs to be followed and complied.

- Officers change management
- New sub-stations data management
- New Feeders data management
- Change of area/Villages mapping from one feeder to another
- Change management in the administrative hierarchy like Creation of new Zone, Circle, Division, Sub-division
- Moving of assets/areas from one administrative hierarchy to other
- Change Management in the FRT (fault rectification team)
- Creation of database of New FRT and updation of the information of existing one like contact numbers needs to be done when require.

- Regular data Updation of Area and Shifts of particular FRT needs to be done to keep the data intact.

2.13. Resource Deployment

Vendor would be required to deploy a team consisting of members with requisite skills and experience as per capability of the proposed team. Replacement of any team member is subject to approval from Discom. Vendor should consider team members of equivalent or higher credentials as replacement. Laptops/PC with internet for the resources shall be arranged by bidder at its own cost. Seating space shall be provided by DHBVN. Quantity and Duration of manpower deployment is also defined in the RFP, which is subject to increase based on requirement of DHBVN.

Following resources shall be deployed for operational support:

- 1 Team Lead – 1 resource
- 2 Application & Operation support team – 3 resources
- 3 Circle Coordinator – 4 resources
- 4 Technical support at Call center – 1 per shift (Total 4 resources including reliever)

Detail requirement of resources is as under:

Team Lead	
Job role	1. End to End responsibility of project deliverable. 2. Weekly review of the project with the nodal officer 3. Monthly review of the project with management 4. Coordination with other solution providers
Qualification	Minimum 7 years of experience, preferably in power sector Minimum qualification, MBA and B.Tech / Graduation in Power Management
Quantity	1 Number
Month of deployment	on Go live for 1 st milestone
Place of deployment	Head office / Gurgaon office

Operation Support Team	
Job role	1. Backend support for DHBVN officers 2. Development of new reports/ MIS 3. Escalation monitoring at head office
Qualification	Minimum 4 years of experience, preferably in power sector. Minimum qualification, B.Tech/ Graduation in Power Management
Quantity	3 Number
Month of deployment	on Go-live for 1 st milestone
Place of deployment	Head office / Gurgaon office

Circle coordinators	
Job role	1. MIS generation and sharing with officers at circle 2. Training of FRT and other officers at circle 3. Physical or virtual (over Video conferencing) trainings can be scheduled as per requirement. 4. Soft copy of the training material will be uploaded online and should be accessible to all concerned users of DHBVN
Qualification	Minimum 3 years of experience, preferably in power sector. Minimum qualification, B.Tech / Graduation in Power Management

Quantity	4 Number
Month of deployment	on Go-live for 1 st milestone
Place of deployment	Gurgaon 1, Gurgaon 2, Hisar and Faridabad Circle Offices

Technical Support at call center	
Job role	1. In order to effectively run the system and to provide the 24x7 support, 4 resources needs to be deputed for customer care center 2. 1 resource will be available in each shifts. Technical support shall ensure the SLA of the software and shall hand hold the customer care center agents for any software related issues. He shall coordinate with backend teams as may be required.
Qualification	Minimum 3 years of experience, preferably in power sector. Minimum qualification, B.Tech / Graduation in Power Management
Quantity	1 Number per shift (total 4 resources including reliever)
Month of deployment	on Go-live for 1 st milestone
Place of deployment	Call Center

2.15 User Acceptance Test (UAT)

Test Plan

Test plans are prepared for each phase of testing. The initial test plan is created during the Project Planning phase. The initial test plan describes who performs which type of testing and when. Ideally master test plan covers all types of test i.e. from unit testing to production testing. The Bidder is expected to submit the test plans to Utility for approval. Any changes made to the test plan during the project life cycle should be communicated to UTILITY for approval.

Test plans contains following items:

Roles and responsibilities of test team

- Approach to testing
- Function testing
- User Interface and reports testing
- Test Scenarios along with entry and exit criteria Test specifications

Test scenarios

Bidder should prepare test scenario for each business scenario. A test scenario when executed should fulfill a business requirement as per the scope of business functionality. Test scenarios include following:

Test Specification - During the test specification phase, the test cases are specified. It consists of description of the input, process to be executed and a prediction of output results.

Test Environment - Component developer does unit testing and integration testing. Integration testing can be delegated to a specialized testing group. Each of the members in the testing group is provided with testing environment according to his/her role and responsibilities. Following is sample testing environment for testing:

- A workstation
- A set of tools and applications required on workstation like access to user interface, browser etc.

- Access to centralized document database (where all the project related documents are maintained)
- Access to testing tools and defect logging tools
- Access to the central database or repository for development and unit testing (this database contains sample test data)
- Access to deployed components

Test Data - Test data is prepared for testing at each stage. The test data should be prepared in such a way that it covers basic path and every alternate path of the code. The basic path and alternate paths are prioritized to capture relevant data. Tools can also be used to generate test data.

Test Execution

The following testing steps are usually employed in the project lifecycle. The Lead Partner along with consortium partners is expected to follow these steps.

Unit Testing - In unit testing, each piece of code has to be rigorously tested. At this stage testing is done according to the priority of path of code. All the test results are logged in the defect logging tools. After every the completion of testing, code is corrected for defect logs. This process is iterative till criteria for successful testing is reached.

Integration Testing - Upon completion of unit testing, integration testing begins. The purpose is to ensure distinct components of the application still work in accordance to customer requirements. Test sets will be developed with the express purpose of exercising the interfaces between the components. This activity is to be carried out by the Test Team. Integration test will be termed complete when actual results and expected results are either in line or differences are explainable/acceptable based on client input.

Incremental Integration Testing - Continuous testing of an application as new functionality is added.

System Testing - System testing is performed when all the components are delivered to central repository prior to the release of the software. The testing is done on priority basis of business processes. All the defects are logged and assigned to respective component owners. The component and unit testing is performed after the correction of code. However, it may depend on size and type of individual test specifications. Impact analysis is useful to narrow down testing efforts by identifying critical test cases affected due to code change.

Acceptance Testing – During the test scenarios definition, for each of the business scenario, an acceptance criterion is defined. Acceptance criteria include expected behavior of the s/w component and the expected results (data). Expected results form a part of the Exit Criteria. In addition to expected result and behaviors, some conditions are also specified in the exit criteria. They can be:

- Number of bugs to be discovered for a functional module. This depends on size of the functionality and is an indicator of amount of testing done.
- If any medium or low-priority errors are outstanding - the implementation risk must be signed off as acceptable by UTILITY and Lead Partner along with consortium partners
- All High Priority errors from System Test must be fixed and tested

Bidder needs to get the acceptance criteria approved from UTILITY for all the functional components of the system. The Acceptance Criteria for each release into production environment

will be agreed upon by Bidder and UTILITY prior to release from Testing to production environment. After installation, if any bug is reported or there is non-compliance to requirements then a proper procedure should be followed. End-user should report ("Change Request") to his/her supervisor about the bug that will in turn get forwarded to Project Manager (PM). PM will forward the List of change request to Lead Partner along with consortium partners. After the bug is fixed, it should be reflected in the production copy after testing it.

Bidder should note that UTILITY can appoint a third party agency for conducting any part of above testing procedures (in addition to the testing carried out by the bidder).

2.16 Data ownership

Ownership of the data shall lie with DHBVN.

2.17 Engineer Incharge:

Engineer in charge for the project shall be CTO, DHBVN.

3. ELIGIBILITY CRITERIA

To be qualified capability and adequacy of resources to carry out the Contract, effectively. Bids shall include the following information: -

S No	Eligibility criteria	Supporting documents required
1	The Bidder should be an established, reputed and experienced firm/ company under the Indian Companies Act, 1956/2013, Partnership Act 1932 or Registration of Societies Act and the Limited Liability Partnership Act 2008 with their registered offices in India (with all latest amendments)	Valid Empanelment certificate of the sole/ lead bidder for the proposed solution. The Bidder should have all applicable Registration certificates viz., Company Registration certificates including GST, PAN card, PF, ESI etc.
2	The bidder in any one year out of last three financial years should have minimum annual turnover of Rs 8 crore & cumulative turnover of Rs 20 crore in last three financial years (2018-19, 2019-20, 2020-21)	Submit CA Audited Accounts and Annual Reports.
3	The Bidder should have a positive net worth in last 3 Financial Years (2018-19, 2019-20, 2020-21)	Submit CA Audited Accounts and Annual Reports.
4	The Bidder should not be blacklisted by any Government department in India.	Bidder is required to submit the declaration on NJSP duly notarized by the firm that it is not blacklisted by any State Govt., Utility or Agency and shall be liable for the consequences of wrong declaration. The bidder should submit along with the Bid no blacklisting certificate for the past three years (Form 12).
5	The Bidder should have experience of providing at least 1 IT/ITES solutions in Power distribution companies in India	Copy of work order & performance certificate is required to be submitted

S No	Eligibility criteria	Supporting documents required
6	The bidder or its OEM (whose product is offered in the bid) should have experience of implementing CHS solution currently running successfully in Power Discoms in India with total consumer base of at least 1 crore on MEITY empaneled cloud complying to following features/ specifications: 1. Officers Access- Web portal, Android app and IOS app 2. Citizen Access - Web portal 3. Integrated Field team tracking module 4. Two way integration with email, Twitter and Facebook with CHS with feature of auto receipt of all messages in CHS and reply to Twitter and Facebook from CRM or Complaint Handling Solution. 5. Chatbot integration for web and WhatsApp with Complaint handling system. 6. Integrated with Automatic outbound IVRS call based consumer feedback 7. Integrated with RT-DAS/ AMR/ AMI systems	Bidder shall attach OEM manufacture authorization form along with performance certificate of CHS solution being supplied & implemented to Govt Power Distribution companies.

Bidder may be asked to do a live demo of offered solution to demonstrate all the functionalities as per scope of work (defined in this RFP) during the technical evaluation.

- I. **Ownership Change:** The Bidder shall be financially sound and must not be anticipating any ownership change during the period from Bid submission to two years. However, in case the firm is anticipating any such ownership change/take over at any stage of the entire bid process and during the execution of contract. They shall seek prior approval from the Employer well in time. It shall be the sole discretion of the Employer to grant permission for such change in ownership / take over and if allowed by the Nigam for ownership change, the new company shall own all responsibilities and liabilities under the contract and the old firm should not be blacklisted by any state/center government or any of its agency. Bidder need to submit the declaration on above lines on NJSP duly notarized (Form 11).
- II. Bidder is required to submit the Information on NJSP duly notarized regarding any litigation, current or during the last two years, in which the Bidder is involved, the parties concerned and disputed amount (Form 12).
- III. Bidder is required to submit the declaration on NJSP duly notarized by the firm that it is not blacklisted by any State Govt., Utility or Agency and shall be liable for the consequences of wrong declaration. The bidder should submit along with the Bid no blacklisting certificate for the past three years (Form 12).
- IV. Copies of original documents defining the constitution or legal status i.e. Memorandum of Article, Article of Association, list of Directors, Certificate of Incorporation, EPF/ESI, Board of Resolution, Written Power of Attorney of the signatory of the Bidder to commit the Bid.
- V. Bidder will supply its Copy of EPF registration and ESI.

- VI. The bidder will supply GST Registration No. and PAN No., issued by concerned departments.

The above stated requirements are minimum and the DHBVN reserves the right to ask for any additional information and also reserves the right to reject the proposal of any Bidder, if, in the opinion of the DHBVN, the qualification data is incomplete or the Bidder is found not qualified to satisfactorily perform the Contract. Notwithstanding anything stated above, DHBVN reserves the right to assess the bidder's ability and capacity to perform the work, should the circumstances warrant such assessment in the overall interest of the owner.

4. PERIOD OF ENGAGEMENT

The overall period of engagement shall be for 2 years and 6 months (6 months for go-live and 2 years of operations). The work can be extended for up to 5 more years extendable on year to year basis.

5. EARNEST MONEY DEPOSIT (EMD)

5.0 The Bidders shall have to pay for EMD fees online by using the service of secure electronic payment gateway. The secure electronic payments gateway is an online interface between suppliers and online payment authorization networks. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ suppliers online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT.

5.1 The EMD of the unsuccessful Bidders will be returned within 15 days on issuance of Letter of Award (LoA) to the successful Bidder.

5.2 The EMD of successful Bidder will be refunded on submission of Contract Performance Guarantee (CPG)

The EMD may be forfeited: -

- a) If the bidder withdraws / modifies its bid during the period of bid validity specified by the bidder in the tender; or
- b) If the bidder does not accept the corrections to arithmetical errors identified during preliminary evaluation of his bid; or
- c) In case of a successful bidder, if the Bidder fails to sign the contract; or
- d) In case of a successful bidder, if the Bidder fails to furnish the performance guarantee
- e) No interest shall be payable by DHBVN on the above EMD.

6.0 Taxation

6.1 The Financial Bid for the Assignment should be quoted on a lump sum basis inclusive all taxes and duties etc. as may be applicable. No escalation for any reason whatsoever (except manpower variation as defined in the RFP) shall be allowed over and above the bid price. However in case of any subsequent variation in taxes & duties by way of change in legislation like GST shall be borne by Nigam. (Price bid format to be filled online is as per Form-6). Income tax at source will be deducted by DHBVN as per the applicable law and regulation and TDS certificate shall be issued to the bidder by DHBVN.

- 6.2** All related travel expenses incurred by the bidder personnel for journeys to site or Clients Office or anywhere in connection with the services under scope of this Assignment will be borne by the bidder and DHBVN will not take any responsibility whatsoever on this account.

7.0 CONTENTS OF BID.

7.1 Pre-Bid Meeting

- The Bidder's designated representative(s) is/are invited to attend a pre-bid meeting at Bidder's expense, which shall take place at the time and venue specified in the BDS
- The purpose of the meeting will be to clarify any issues regarding this RFP in general and the scope of work in particular.
- The Bidder may submit any question or query to Utility in writing, to reach Utility not later than one week before the meeting as per the format given in BDS. It may not be practicable at the meeting to answer questions received late, but questions and responses will be transmitted as indicated hereafter.
- Minutes of the meeting, including the text of the questions raised and the responses given, together with any responses prepared after the meeting, will be transmitted through the e-Procurement System mentioned without delay to all prospective Bidders who have downloaded the RFP.
- Non-attendance at the pre-bid meeting will not be a cause for disqualification of a Bidder

7.2 BID DOCUMENTS

The bid document contains the following documents:

Section-1	:	Bid Invitation Letter
Section-2	:	Bid Forms Performa
Section-3	:	Conditions of Contract

8.0 SUBMISSION OF BID

Bid shall consist of two parts "**Technical Proposal**" and "**Financial Proposal**" and should be duly submitted online using the e-Procurement Portal <https://etenders.hry.nic.in> before the due date.

Note:

- 8.0.1 The Technical Proposal should contain scanned copy of EMD, Form-1, Form-2, and Form-7 duly filled and signed by authorized signatory and authority letter as per Form-5.
- 8.0.2 The Bidder should agree to the entire scope of work and deliverables (given in the Covering Letter Form-1). No proposal for deviation/ part scope of work will be considered.
- 8.0.3 Details of past experience are to be provided in Technical Bid as per format provided at Form-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/LoI or any other representative documents etc. and Project Completion Certificate / proof of final payment from their Clients.) to be provided in support of past experience.
- 8.0.4 Adequacy of the proposed Methodology and work Plan in responding to the Scope of work as per Form - 7.
- 8.0.5 Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Accounts duly certified by a Chartered Accountant.

- 8.0.6 The original and copy of the bid shall be typed or written in indelible ink and shall be signed by the Bidder or a person or persons duly authorized to bind the Bidder to the Contract. The letter of authorization shall be indicated by the written power of attorney accompanying the bid. All pages of the bid, except for un-amended printed literature, shall be initialed by the person or persons signing the bid.
- 8.0.7 The bid shall contain no interpolation, erasure or overwriting except as necessary to correct errors made by the Bidder, in that case, each such correction shall be initialed by the person or persons signing the bid.
- 8.0.8 Queries relevant to the Bidding Documents prior to opening of NITs shall be addressed to: -

By mail: SE/IT, Vidyut Sadan, Vidyut Nagar, DHBVN, HISAR
Email ID: seit@dhbvn.org.in

9.0 Signature of Bid

- 9.0.1 The Bid must contain the name, residence and place of business of the person or persons making the Bid and must be signed and sealed by the Bidder with his usual signature. The names of all persons signing the Bid should also be typed or printed below the signature.
- 9.0.2 Bid by a partnership must be furnished with full names of the all partners and be signed with the partnership name, followed by the signature(s) and designation(s) of the authorized partner(s) or other authorized representative(s). Copy of the Partnership deed will be supplied along with the Bid.
- 9.0.3 Bid by Corporation/Company must be signed with the legal name of the Corporation/Company by the President, Managing Director or by the Secretary/other person/or persons authorized to Bid on behalf of such Corporation/Company in the matter.
- 9.0.4 A Bid by a person who affixes to his signature the word 'President' 'Managing Director', 'Secretary', 'Agent' or other designation without disclosing his Principal will be rejected.
- 9.0.5 Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the Bid.
- 9.0.6 The Bidder's name stated on the proposal shall be the exact legal name of the firm.
- 9.0.7 Bids not conforming to the above requirements of signing may be disqualified.
- 9.0.8 The Financial Proposal should contain the detailed price offer for the consultancy services in online format as per Form-6.

10 BID OPENING AND EVALUATION OF PROPOSALS

10.0 Opening of Bid

The DHBVN will open Bids in the presence of Bidder's representatives (up to 2 persons) who choose to attend, on the date and time for opening of Bids in the invitation to Bids or in case any extension has been given thereto, on the extended Bid opening date & time notified to all the Bidders who have purchased the Bidding Documents.

The Bidder's representatives who are present shall sign a register evidencing their attendance.

The Bidders' names, Bid prices, modifications, Bid withdrawals and the presence or absence of the requisite Bid security and such other details as the DHBVN, at its discretion, may consider appropriate will be announced at the opening.

No electronic recording devices will be permitted during Bid opening.

10.1 Clarification of Bid

To assist in the examination, evaluation and comparison of Bids, the DHBVN may at its discretion, ask the Bidder for a clarification of its Bid. The request for clarification and the response shall be in writing and no change in the price or substance of the Bid shall be sought, offered or permitted.

10.2 EVALUATION OF PROPOSALS

The DHBVN reserves the right to accept or reject any or all Bids, and to annul the Bidding process and reject all Bids at any time prior to award of Contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders on the grounds for the DHBVN's action.

Pooling by the bidders is strictly prohibited. If it is found at any stage that pooling has been done by the various bidders, then their bids / tender may be cancelled and action against the defaulting bidders will be taken such as black listing /debaring them from Nigam tenders for two years.

Bids shall be deemed to be under consideration immediately after they are opened and until such time official intimation of award / rejection is made by the DHBVN to the Bidders. While the Bids are under consideration, Bidder and/or his representatives or the interested parties are advised to refrain from contacting by any means, the DHBVN and/or his employees/representative on matter related to the Bids under consideration. The DHBVN, if necessary, will obtain clarifications on the Bids by requesting for such information from any or all the Bidders, in writing. Bidders will not be permitted to change the substance of the Bids after the Bids have been opened. Any effort by a Bidder to influence the purchaser in any way may result in rejection of the Bidder's Bid.

A) Responsiveness check

The responsiveness check will be with respect to the following:

- i) The Technical Proposal should contain scanned copy of EMD, Form-1, Form-2, and Form -7 duly filled and signed and stamped by authorized signatory as per Form-5.
- ii) The Bidder should agree to the entire scope of work and deliverables (given in the Covering Letter Form-1). No proposal for deviation/ part scope of work/conditional will be considered.
- iii) Details of past experience are to be provided in Technical Bid as per format provided at Form-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/Lol or any other representative documents etc. and Project Completion Certificate / proof of final payment from their Clients.) to be provided in support of past experience.
- iv) Adequacy of the proposed Methodology and Work Plan in responding to the scope of work as per Form - 7.
- v) Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Accounts duly certified by Chartered Accountant for meeting minimum turnover criteria.
- vi) Nigam can inspect bidder's existing call center after the opening of part-I bids for the purpose of evaluation of bids.
- vii) Nigam reserves the right to depute officers in the existing call centers of the bidder to access the quality of infrastructure, manpower, technology per se being used and various MIS reports as well as to take performance inputs from their existing customers etc. for which the bidder shall fully support and provide the access as well as required documents etc. In case the bidder refuses to assist DHBVN in doing the qualitative analysis or if DHBVN found that quality of existing call centers and bidder's manpower is not up to the desired satisfaction of DHBVN, the bidder shall not be considered as qualified in the technical evaluation.

DHBVN may call for any clarifications/ information if required. Bid of any firm not meeting any or all the above criteria, the technical evaluation of the firm will not be carried out and the bid may be liable for rejection.

B) Technical Evaluation

- a) The technical proposal of all the bidders shall be evaluated. The bidders, whose technical proposal is found to be responsive and meets the Employer's requirements given herein, shall be qualified and the financial proposal of only technically qualified bidders shall be opened and considered for further evaluation. The date of opening of Financial Proposal shall be intimated to all the bidders who meet with the technical qualification criteria of the NIT.

10.3 Opening of Financial Proposal

The Financial Proposal would be opened online only for eligible Bidders who qualify as per Pre-qualification requirements set out in this RFP. The date and time of opening of the Financial Proposal of the eligible Bidders will be intimated separately. The Financial Proposal will be opened online in the presence of the authorized representatives of the Bidders, who wish to be present.

10.4 Financial Proposal

All prices quoted by the bidder shall be 'FIRM' during the performance of the Contract and shall not be subject to variation on any account, for all intents and purposes except GST or as per clause 14 i.e., price variation. No escalation for any reason whatsoever shall be allowed over and above the bid price. GST shall be paid over and above the bid price. Income tax at source will be deducted by DHBVN as per the applicable law and regulation and TDS certificate shall be issued to the selected Bidder by DHBVN.

10.5 Award Criteria

- a. A bidder is required to quote for both the technical and price bids separately. Partial Bid is liable to be rejected. The evaluation will be done on the total project cost including applicable Tax.
- b. After opening of the price bid, the following procedures shall be followed by Nigam: -
"The price discovery for the award of project shall be generally determined based on the rates quoted by the L1 bidder and the negotiations, if any, held with the lowest bidder. However, as applicable in the award of turnkey works, negotiations could be held up to L3 bidder, if the difference between the L1 quoted rate and those quoted by the L2 and L3 is within 5% of the L1 quoted rates. In cases where the L1 bidder refuses to further reduce his offered price and the L2 or L3 bidder comes forward to offer a price which is better than the price offered by the L1 bidder, the bidder whose price is accepted becomes L1 bidder. However, in such a situation, the original L1 bidder shall be given one more opportunity to improve on the discovered price. In case of acceptance, he would be treated as the L1 bidder. Tenders shall be decided as per the prevailing instructions of Government of Haryana/Nigam."

11 Notification of Award

Prior to the expiration of the period of Bid validity and extended validity period, if any, the DHBVN will notify the successful Bidder in writing by registered letter or by e-mail or fax, to be confirmed in writing by registered letter, that its Bid has been accepted. The notification of award will constitute the formation of the Contract. Upon the successful Bidder's furnishing of performance guarantee, the Owner will promptly

notify each unsuccessful Bidder and will discharge his Bid security. The firms failing to honor LOIs shall be Blacklisted / Debarred from doing business with Nigam besides the other action as per terms & conditions of the contract. The period of blacklisting of the defaulting supplier / Business Associate will be up to 3 years. The blacklisting of the Business Associate / supplier should be notified to all Power Utilities in the country and the names of such blacklisted supplier / Business Associate would also be put on the website of the Nigam.

12. Signing of Contract

Within fifteen (15) days of the Notification of the Award the successful Bidder shall sign and date the Contract as per format attached and return it to the Owner. In case the successful bidder fails to submit the Contract Agreements duly signed within 15 days from the date of issue of detailed contract, the payment will not be released till the bidder submits the Contract agreements and penalty @ 0.25% per week or a part thereof shall be deducted from their bill subject to maximum 1% of Contract value.

The final contract agreements shall be signed within 15 days from the date, the firm submits the final Contract Agreements in all respect.

13. VALIDITY OF BID

Bidders shall keep their bids /proposals valid up to 120 (One hundred Twenty) days from the date of opening of the Financial Proposal. Bidders may be required to further extend the validity of Bid as per the requirement of DHBVN.

In exceptional circumstances, prior to expiry of the original Bid validity period, the Employer may request the L-1 Bidder to extend the period of validity for a specified additional period. The request and the responses thereto shall be made in writing or by e-mail / fax. The bidder may refuse the request without forfeiting its bid security. The Bidder agreeing to the request will not be required or permitted to modify his Bid, but will be required to extend the validity of his Bid for the period of the extension. Further, in case of refusal or no response by L-1 bidder till the expiry of bid validity period, the tender shall be dropped. In any case, the EMD of bidder other than L-1 shall invariably be refunded, preferably, within 14 days after expiry of bid validity.

14. **Price Variation:** The bidder shall be allowed price variation on the manpower rates quoted by the bidder as per BOQ to cover increase in price index from time to time. The Price variation clause shall be applicable from the 1st day of next month after completion of first year from date of award & subsequently allowed on yearly basis till the completion of contract/extended period as the case may be. Price variations shall be computed on variation in consumer price index issued by Department of Economics and Statistical Analysis, Govt. of Haryana. This variation shall be applicable on quoted rates of labour/ manpower.

Formula shall be as under: -

$$V = A / B * 100$$

Where,

V: Variation in consumer price index. The variation % so computed shall be applied to the unit rates quoted by the bidder.

A: Price index rate applicable on the 1st day of a next month immediately after the end of one year from the date of award of contract. For subsequent increase beyond first year, Price index rate as applicable on the first day after expiry of 1 year period thereafter.

B: Base index rate prevailing on the first working day of the month, one month prior to the date of tender opening.

15 TERMS OF PAYMENT

a. Mobilization Advance:

The bidder is provided with an option to claim one time mobilization advance upto 10% of “One Time Charges” (net of GST) against equivalent amount of Bank Guarantee. The mobilization advance shall be recovered from running invoices of the firm as per the schedule given below:

- i) 100% of Advance amount will be recovered from one time works/Capex component as per BOQ. The advance amount shall be recovered from due payment against each running invoice till the entire advance amount is recovered
- ii) The BG shall be valid for 09 months from the date of submission or till the complete recovery of the advance amount. The BG shall be returned within 2 weeks from the recovery of 100% advance amount.

The BG shall be submitted in favour of CTO, DHBVN & payment shall be released from office of FA/CBO within 15 days of submission of Advance BG.

b. Payment terms of items of BOQ:

The payment of various items of BOQ shall be release as per following process. Payment due to the firm shall be made through RTGS in the bank account of the firm by the office of FA/CBO. All invoices shall be approved by the office of CTO, DHBVN.

Software delivery has been divided in to 3 milestones as detailed below:

Milestone 1	Implementation of: 1.1 Omni channel Complaint Handling System with all modes to complaint registration as per scope of work including creating process flows for complaint types and sub-types as per requirement of DHBVN 1.2 Reporting framework including reports and dashboards as per requirements of DHBVN 1.3 One time Database creation and management of SSO, FRT, Feeders & division Level Users 1.4 Consumer Feedback Module 1.5 Quality Check Module
Milestone 2	Implementation of: 2.1 Fault Management System integrated with 1912, Rights to update Status at SSO level & District Level Users. Notification mechanism at SSO & District level users with real time dashboards 2.2 Implementation of Social Media Integration

Milestone 3	Implementation of: 3.1 Condition monitoring system 3.2 Field tracking system integrated with 1912 3.3 Implementation of Cloud Based Chabot.
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SR. No	Details	Milestone
A. Design, Development and Deployment of Software		
1	Submission of AS IS – TO BE Document	10% of total cost of design, development and deployment of software
2	Milestone 1	25% of total cost of design, development and deployment of software
3	Milestone 2	25% of total cost of design, development and deployment of software
4	Milestone 3	25% of total cost of design, development and deployment of software 10% of total cost of design, development and deployment of software after 1 month of go-live of complete system
5	Security audit of the system	5% of total cost of design, development and deployment of software after clearance of security audit + security audit charges.
B. Recurring Services for 2 years		
B.1 Resources		Resource Deployment timeline
6	Team Lead - CRM & OMS	On Monthly basis
7	Support at Call center: 24x7 on site system support and program management by interacting with field offices and headquarters 4 resource in call center (1 person per shift + 1 Leave Reserve)	
8	Operation & Application Support Resources	
9	For support & coordination with all circle offices of DHBVN.	
B.2. Facility Management Services for each month for 2 years		
10	Cloud charges along with DBA and Data Management services and FMS charges for email Service	On Monthly basis
11	Training @ Division level (onsite) per session on the work flow of Application and use of MIS reports as per requirement of Discom	On Monthly basis as per actual
12	Outbound Call charges	On Monthly basis as per actual
13	Annual Software Subscription charges including FMS charges of all tools after completion of 1 year of software go-live	a. The payment shall be made on annual basis in advance for each year after completion of 1st year of go-live. b. In case, the remaining contract period is less than a year, then the payment

SR. No	Details	Milestone
		shall be made on pro-rata on the basis of the number of days of the remaining contract period.

- c. Successful bidder shall raise monthly invoice (in triplicate) with the office of CTO/DHBVN, Hisar and the payment against the invoice submitted (accompanied with all requisite documents & system generated reports) shall be released by DHBVN on 30th day from the date of submission of invoice with complete requisite reports & documents. The successful bidder shall submit the following documents:-

- Monthly Invoice in triplicate
- Monthly MIS reports and data in the prescribed formats in soft copy as well as in hard copy.

100% of payment shall be released on monthly basis on submission of bill & furnishing of MIS reports duly verified by SE/IT and approved by CTO/DHBVN. The SLAs will govern the penalty and deduction from the payment for inferior deliverables.

All payments shall be made by RTGS/NEFT/Bank Transfer in favor of the successful bidder.

The currency in which payments shall be made to the selected bidder under this contract shall be Indian Rupees (INR) only.

All remittance charges, if any, shall be borne by the selected bidder.

In case of disputed items, the disputed amount shall be withheld and will be paid only after settlement of the dispute.

In case the project is awarded for extension after two years of operation, the payment being made by DHBVN shall continue for the extended periods well.

16 CONTRACT PERFORMANCE BANK GUARANTEE (PBG)

The successful Bidder, to whom the work is awarded, shall be required to furnish a performance Bank Guarantee (PBG) from a Scheduled/ Nationalized Bank, in branch situated in Hisar in the form attached in favor of the Owner.

a) PBG for “One time Charges”:

- The guarantee amount shall be equal to 10% percent of “One Time Activity”.
- The PBG shall be submitted within 15 days of receipt of LOA.
- The PBG shall be valid up to 90 days from the date of Go-Live of entire solution duly accepted by DHBVN without any observations.

b) PBG for “Recurring Charges”:

- The guarantee amount shall be equal to 10% of the yearly value of recurring charges.
- The PBG shall be submitted within 15 days after Go-Live of the solution.
- The PBG shall be valid for 1 year + 90 days in the first instance & shall be renewed annually till the completion of contract/extended period.

Both the PBG shall be issued in favour of CTO, DHBVN, Hisar & shall be released within 30 days of the

expiry of contract/extended period.

Further Penalty @ **0.05% per day or part thereof subject to maximum 2% of the value of BG** if bank guarantee is not submitted within the time period mentioned as above for each BG.

If the bank guarantee is not submitted within 30 days from the specified date, the employer/ Nigam reserves the right to cancel the LOA and initiate the action for allotment to L-2 firm at the risk and cost of L-1 firm. However, before the expiry of above mentioned 30 days, the firm may seek approval for grant of additional one month (maximum) on payment of the entire penalty amount for 30 days as mentioned above. The grant of onemonth will not entitle the firm to claim the extension of the scheduled completion time.

The Contract Performance Guarantee is intended to secure the execution/ performance of the entire Contract. The Performance guarantee will be returned to the firm without any interest at the end of the contract period with the approval of competent authority.

17 Project Timelines:

Software delivery has been divided in to 3 milestones as detailed below:

Milestone 1	Implementation of: 1.1 Omni channel Complaint Manager System system with all modes to complaint registration as per scope of work including creating process flows for complaint types and sub-types as per requirement of DHBVN 1.2 Reporting framework including reports and dashboards as per requirements of DHBVN 1.3 Onetime Database creation and management of SSO, FRT, Feeders & division Level Users 1.4 Consumer Feedback Module 1.5 Quality Check Module
Milestone 2	Implementation of: 2.1 Fault Management System integrated with 1912, Rights to update Status at SSO level & District Level Users. Notification mechanism at S/Division & Higher level users with real time dashboards 2.2 Social Media Integration (Twitter & Facebook) 2.3 Cloud based chatbot
Milestone 3	Implementation of: 3.1 Condition monitoring system 3.2 Field tracking system integrated with 1912

Sr. No	Details	Milestone	Time in weeks
A.	One Time Services Design, Development and Deployment of Software		T is date of issue of LOI/ LOA

Sr. No	Details	Milestone	Time in weeks
1	Submission of AS IS – TO BE Document		T+1 month
2	Milestone 1	M1	T + 3 Months
3	Milestone 2	M2	T + 4 Months
4	Milestone 3	M3	T + 6 Months
5	Security audit of the system	M4	T + 8 Months
B. Recurring Services			
B.1 Resources		Resource Deployment timeline	
6	Team Lead - CHS & OMS	M1	
7	Support at Call center: 24x7 on site system support and program management by interacting with field offices and headquarters 4 resource in call center (1 person per shift + 1 Leave Reserve)	M1	
8	Operation & Application Support Resources	M1	
9	For support & coordination with all circle offices of DHBVN.	M1	
B.2. Facility Management Services for each month for 2 years			
10	Cloud charges along with DBA and Data Management services and FMS charges for email Service	M1	
11	Training @ Division level (onsite) per session on the work flow of Application and use of MIS reports as per requirement of Discom	As and when required	
12	Outbound Call charges	M1	
13	Annual Software Subscription charges including FMS charges of all tools after completion of 1 year of software go-live		T+18 months

18. Penalty for Delay in Completion

If the vendor fails to deliver “One Time Services” as per the time schedule mentioned above, the vendors shall be liable to pay penalty @ 0.5% per week or part thereof of the “One Time Charges” for implementation of services until the delivery schedules and full deliverables are restored to agreed committed levels subject to a ceiling of 15%.

The Employer may without prejudice to any other method of recovery, deduct the amount of such penalty from any amount due or to become due to the Contractor. The deduction of the penalty shall be made from the running bills of the contractor subject to the maximum of 50% of that bill amount. The remaining penalty amount, if any, shall be adjusted from the consequent final bill of the contractor, thereafter. However, the paying authority shall ensure that the pending payments against the contract are more than net penalty recoverable from the contractor. The payment or deduction of such penalty shall not relieve the Contractor from his obligation to complete the Works or from any other of his obligation and liabilities under the Contract.

Further, once the maximum is reached, the Nigam may consider termination of the contract.

19. SLAs & Penalties: -

Service level agreement is detailed below for various service components. SLA measurement shall be carried out on monthly basis. These shall be applicable during the complete tenure of the project (applicable on recurring charges only) subject to maximum cap of 15% payment of monthly invoice.

In case of one defaulted SLA, if penalty on multiple SLA comes into effect, then penalty on the SLA with maximum penalty will only be applicable i.e., Penalty will be charged only on one SLA and not for multiple SLA defaults.

Penalty will be computed on the milestones/components which are delayed

Sr. no.	Service	Parameter	Service Level	Validation	Penalty
1	Backup/ Restore Management	The Supplier should take backup as per the backup schedule defined by utility	100%	Report	If the negligence is found in monthly audit, the Bidder would be penalised a sum of Rs. 5,000/- per negligence.
		Utility would periodically (once a quarter on a Random day) request the Supplier to restore the backup data.	100%	Report	Rs 20,000/- for every restore test failure
2	Change Management/ BPR required on account of HERC Directives or any commercial instructions or otherwise as required by utility.	Amendment of system as per the requirement of DHBVN within a period of 1 month of Change Management	100%	Change Management Tracker	Rs 5000/- per week or part thereof of delay beyond 1 month

	Service	Description	Measurement	Service Level	Penalty
3	Operations Response Time	Loading of Home Page & response time for all complaint registration pages (available on website and mobile app). The response should be less than 15 seconds.	Measured over internet over 512 kbps Internet broadband. Measured through continuous scripts every 10 minutes on 24 X 7 basis. (Measured as http request and response cycle).	Target >=99.5%	No Penalty
				Target >=98.0% & <99.5%	1% of the Monthly Cloud Charges & Annual Software Subscription Charges (calculated on Monthly Basis). Additional 1% penalty for every 0.5%

					drop in the Service Level.
4	Cloud service	Availability/Uptime of cloud services. Target Level 99.9%	Availability will be measured for each of the underlying components (e.g., VM, Storage, OS, VLB, Security Components, orchestration layer, virtualization layer) provisioned in the cloud. Measured with the help of SLA reports provided by bidder	<99.9% & ≥ 99.5%	1% of monthly Cloud Charges.
				< 99.5% & ≥ 99%	5% of monthly Cloud Charges.
				Subsequently, every 0.5% drop in SLA criteria	Additional 2.5% of monthly Cloud Charges.
5	Cyber security	Security and Privacy breach including Data Theft / Loss/ Corruption/	Any incident where in system compromised, privacy breached, data is corrupted, data is mined or any case wherein data theft occurs (including internal incidents) impacting business operations in a major way		Any security incident detected INR 1 Lakhs. This penalty is applicable per incident. These penalties will not be part of overall SLA penalties cap per month. In case of serious breach of security wherein the data is stolen, mined, privacy breached or corrupted, Client reserves the right to terminate the contract.
		Data Security, Data Privacy Incident or Data Breach – Reporting of Incidents	Measured as a percentage by the number of defined incidents reported within a predefined time (1 hour) limit after discovery,	<95% and ≥ 90% within 1 hour	5% of monthly Cloud Charges

			over the total number of defined incidents to the cloud service which are reported within a predefined period (i.e. Month). Incident Response - bidder shall assess and acknowledge the defined incidents within 1 hour after discovery otherwise additional penalties shall be applicable.	<90% and ≥ 85% within 1 hour	10% of Q monthly Cloud Charges
				Subsequently, every 5% drop in SLA criteria	Additional 5% of monthly Cloud Charges.

Availability of Resource

Resources will be allowed 1 leave per month, upon approval and beyond that, penalties shall be applicable

S. No.	Resource	SLA Desired Level to be	Deduction from the bill of contract of per day Rate
1	Team Lead	96.5% (1 day leave allowed)	125% of day rate
2	Operation support team	96.5% (1 day leave allowed)	125% of day rate
3	Circle Coordinator	96.5% (1 day leave allowed)	125% of day rate
4	Technical support at Call center	96.5% (1 day leave allowed)	125% of day rate

20. Delay in the Vendor's Performance

If at any time during performance of the Contract, the Vendor should encounter conditions, not attributable to him or his associates, impeding timely completion of the services under the contract and performance of the services, the Vendor shall promptly notify the Nigamin writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable, after receipt of the Vendor's notice, the Nigam shall evaluate the situation and may at its discretion extend the Contract time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract. Any delay by the Contractor for reasons other than those given in the above paragraph in the performance of its Contract obligations shall render the Vendor liable to any or all of the following:

- Forfeiture of its performance security;
- Imposition of penalty
- Termination of the Contract

21. Blacklisting of the Firms:

The firm will be blacklisted,

- If the firm backs out of the contract at any stage, the firm will be issued two 15 days notices to commence

the work failing which no further notices will be issued and the firm will be straightway blacklisted, without prejudice to other terms and conditions of the contract.

- II. If the firm indulge in fraudulent and illegal practices such as forgery, cheating or any civil/criminal wrongdoing or any grave misconduct of similar nature which has a direct impact on the contract and the Nigam. In such case no notice of default will be issued and the firm will be straightway blacklisted in addition to initiating the legal proceeding etc., without prejudice to the other terms and conditions of the contract.
- III. If the Business Associate fails to complete the work within the delivery/completion schedule, the deduction of the penalty will commence as per the terms and conditions of the present Bid Documents. On deduction of the complete penalty as admissible, the Business Associate will be issued one 15 days notice to complete the work failing which the Performance Bank Guarantee will be forfeited. Subsequent to the above second 15 days notice will be issued and the firm will be blacklisted thereafter.

The Performance Bank Guarantee of the Blacklisted firms will be forfeited and the firms shall have no claim whatsoever on the same.

However, Procedure and other conditions of contract are regulated by procurement manual of DHBVN/UHBVN, so, these will be applicable to the Business Associate as per procurement manual of DHBVN/UHBVN and amendments thereof from time to time.

“Period of Blacklisting shall be minimum three years and all power utilities in the country shall be intimated about the same.”

22. OTHER TERMS & CONDITIONS

- i) The financial proposal by the Bidders shall be in Indian Rupees as per format enclosed (Form 6) with no escalation provision for any reason whatsoever till the completion of the Assignment.
- ii) The Bidder shall make available appropriate personnel as may be required for successful execution of the Assignment and or as may be required by DHBVN on specified dates, venues and time in order to meet the obligations of DHBVN.
- iii) All claims shall be raised by the Bidder as per the terms of payment after being due, and would be accepted for payment based on satisfactory progress and quality of the work at the sole discretion of the competent authority.
- iv) In case there is a delay by the Bidder in accomplishing the deliverables which in the opinion of DHBVN is attributable to the Bidder, DHBVN reserves the right to get such specific work(s) done through any other Agency(ies) at the risk and cost of the Bidder for timely completion of the deliverables.
- v) In case the performance of the proposed team member(s) is not satisfactory, the Bidder will be asked to change/replace the team member(s) within three days of receipt of such request from DHBVN with a member acceptable to DHBVN.
- vi) DHBVN can cancel the contract at any stage of the work, in case it is found that the knowledge of a team/team member(s) and or his/her performance is not satisfactory, any information given at the time of submission of the bid is found to be incorrect.

- vii) The employee may at any time by written order given to the bidders, make addition/change within the general scope of the contract.
- viii) Given the nature of the work being entrusted, the firm would have to give an undertaking to the effect that the contents/ essence of any reference/ documents given would not be disclosed to any third person without the express approval of DHBVN, failing which the engagement of the firm could be terminated.
- ix) If due to any reason or decision of the Govt /Client, the Assignment is dropped and the Bidder is directed to discontinue work, the Drop Dead Fee would be limited to the payments received by the Bidder and the claims already raised, as per the payment terms relating to the Assignment, till the point of calling off the Assignment or as mutually agreed.

- x) **Conflict of Interest:** Organizations would not be hired for any work whose interests are in conflict with their prior or current obligations to the other organizations/ clients or that may place them in a position of being unable to carry-out the work assigned to them at any point of time during the currency of engagement by DHBVN or above all enable them to pose a threat to DHBVN's consulting business in future. Without limitation on the generality of the foregoing, organizations would not be hired, under the circumstances set forth below:

Organizations that have business or family relationship with member(s) of DHBVN's employees or

persons positioned in or on the Board of these two organizations by whatever process would not be engaged. A declaration to this effect would be taken from the organization when being engaged, and if found incorrect, the organization would be debarred from any further engagement by DHBVN ever.

- xi) The Bidder shall keep DHBVN, both during and after the term of this Contract, fully and effectively indemnified against all losses, damage, injuries, deaths, expenses, actions, proceedings, demands, costs and claims, including, but not limited to, legal fees and expenses, suffered by DHBVN or any Third Party, where such loss, damage, injury or death is the result of a wrongful action, negligence or breach of contract by the Bidder, or the Bidder's personnel, including the use or violation of any copyright work or literary property or patented invention, article or appliance.
- xii) No offer should be sent by Fax or E-mail.
- xiii) DHBVN reserve the right to accept or reject any or all Proposals/Offer or annul the bid Process or modify/ change the content of the bid document without assigning any reason.
- xiv) At any time prior to the deadline for submission of Bids, the DHBVN may, for any reason, whether at its own initiative or in response to a clarification required by a prospective Bidder, modify the Bidding Documents by amendment(s). The amendment will be notified through Corrigendum uploaded in the websites of DHBVN and <https://dhbvn.org.in> DHBVN will bear no responsibility or liability arising out of non-receipt of the same in time or Otherwise. In order to afford prospective Bidder reasonable time in which to take the amendment into account in preparing their Bids, the DHBVN may, at its discretion, extend the deadline for the submission of Bids. Such amendments, clarifications etc. shall

be binding on Bidders and will be given due consideration by the Bidder while they submit their Bids and invariably enclose such documents as a part of the Bid.

- xv)** DHBVN shall not entertain any claim of any nature, whatsoever, including without limitations, any claim of expenses in relation to the preparation, submission or any other activity relating to bidding or any other expense till award of contract.
- xvi)** The Bidder shall not be permitted to sub-contract any part of its obligations under the Contract with the utilities.

SECTION -2 BID FORMS AND PROFORMA

FORM – 1: COVERING LETTER

From:

To: CTO/ DHBVN, Hisar

Sub: Appointment of an Agency for providing Integrated omni-channel Complaint Handling System (CHS) system and Field tracking system for DHBVN

Sir,

1. We _____ (Name of organization) herewith enclose Technical & Financial proposal for selection of our organization for Appointment of an Agency for providing Integrated omni-channel Complaint Handling System and Field tracking system for DHBVN
2. We are submitting our bid consisting of (With Indexing):
 - a) Receipt of Online Payment for the prescribed amount of Rs 5 Lakh Rupees In favor of DHBVN, Hisar is enclosed, as earnest money as desired. I fully understand that in the event of my/our tender being accepted this earnest money shall be retained by you till the submission of performance guarantee by me. I/we shall have no claim to the refund of the earnest money prescribed against this tender in the event of my/our non-compliance of the purchase Order provided such order is placed within the period of validity of my/our tender as Indicated In paragraph 4 below. I further understand that my earnest money will stand forfeited even if I withdraw my tender at any stage during the currency of the period of validity.
 - b) My/our tender along with the terms and conditions with the relevant columns and annexure duly filled in under my/our attestation and with each page of the tender papers (including the enclosed terms and conditions signed by me/us, (in the capacity of sole owner/general or special attorney, in proof of which power of attorney is attached) is submitted for your favorable consideration.
 - c) I/we have read the enclosed terms and conditions carefully and have signed the same in taken of their absolute and unqualified acceptance. My/our tender constitutes a firm offer under the Indian Contract Act 1872 and is open to an acceptance in whole or in Parts. My/our offer, if accepted on the attached terms and conditions will constitute a legally binding contract and shall operate a contract as defined in the Indian Contract Act. 1872 and the Indian sale of goods Act. 1930.
 - d) Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Reports.
 - e) Form-1, Form-2, Form -7, Form-11 & Form-12
 - f) The Bidder should agree to the entire scope of work and deliverables (given in the Covering Letter Form-1). No proposal for deviation / part scope of work/ condition will be considered.
 - g) Details of past experience are to be provided in Technical Bid as per format provided at Form-2. Documentary evidence (e.g. Copy of work Order/Letter of Award/Lol/Completion

certificate/ Project Report /proof of payment/ any other relevant documents etc.) to be provided in support of past experience

h) Adequacy of the proposed Methodology and work Plan in responding to the Scope of Work as per Form - 7.

3. _____[Name and contact information of one of the team member] shall be the Team Leader for the Assignment.
4. We declare that the quoted lump sum fee is firm and shall remain valid for the entire period of the consultancy Assignment. We further declare that the above quoted fee includes all taxes (excluding GST) payable by us under this consultancy Assignment.
5. We hereby confirm that if any Income Tax, Surcharge or any other Corporate Tax is attracted under the law, we agree to pay the same to the concerned authorities.
6. We declare that the services will be rendered strictly in accordance with the specifications. We confirm our acceptance/compliance to the `Deliverables` and `Terms of payment` clauses as stipulated in the bid documents. We confirm that Contract Performance Guarantee for 10% of first year contract price in the form of bank guarantee shall be provided by us in case of placement of award as per the Form-8.
7. We hereby declare that only the company, persons or firms interested in this proposal as principal or principals are named herein and that no other company, person or firm other than one mentioned herein have any interest in this proposal or in the contract to be entered into, if we are awarded this contract.
8. We declare that the services will be rendered strictly in accordance with the specifications and we do not have any deviation to any of the terms and conditions of the bidding documents.
9. We confirm and certify that all the information / details provided in our bid are true and correct.
10. We give our unconditional acceptance to the Bid Documents issued by DHBVN, as amended. We shall execute the Contract Agreement as per the provisions of the Bid Document.
11. Further, we confirm that we agree to and seek no deviations from the scope of work, time schedule, deliverables, payment terms and all other terms and conditions as contained in the Bid Document. The proposal is unconditional. The Bid will be valid 120 (One hundred twenty days) from the opening of Financial Bid.
12. We also declare that by taking this Assignment we do not have any conflict of interest with any of our prior or current obligations to other organizations/clients and also do not have business or family relationship with members of DHBVN/ DHBVNs employees or persons positioned in or on the Board of DHBVN by whatever process and if found incorrect, we may be debarred from any further engagements by DHBVN forever.

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13. We certify that all the information provided in our bid, including the information regarding the team members, is true. We understand that any willful misstatement in the bid may lead to disqualification or cancellation of award if made or termination of contract. We also understand that in such a case we may be debarred for future assignments with DHBVN for a period of maximum three years from the date of such disqualification.
14. Further, we undertake that in the event of our appointment as Bidder, given the nature of the work being entrusted, the contents/ essence of any reference/ documents given would not be disclosed to any third person without the express approval of DHBVN, failing which the engagement of the organization would be terminated

Signature of Authorized PersonName:

Designation & Company seal

Date:Place:

FORM – 2: EXPERIENCE OF ORGANISATION

1. Brief Description of the Organization:
2. Outline of experience on assignments:

Sr. No.	Name of assignment with work order no. and date	No. of Agents & Supervisors	Client	Work Order Value	Date of Commencement	Date of Completion	Scope of work in brief/ type of Services Provided
1							
2							
3							
4							
5							

3. It is hereby certified that the above mentioned details are true and correct.
4. It is hereby certified that our company has actually carried out and completed the above mentioned work/as

Signature of Authorized Signatory Full Name:

Date:

Note:

Experience of the Bidders would be evaluated on the following basis:

1. Please attach documentary proof for claimed experience; the proofs could be namely, Copy of work Order/Letter of Award/Lol/Completion certificate/ Project Report /proof of payment/ any other relevant documents etc.
2. Please attach copy of documentary proof of satisfactory completion for assignments handled from their Clients.
3. Documentary proof in support of turnover shall be submitted by the Bidder in the form of Audited Annual Reports duly certified by Chartered Accountant

FORM – 3: SCHEDULE OF PRICE BID

Sub: Appointment of an Agency for providing integrated omni-channel Complaint Handling System and Field tracking system for DHBVN

Price Bid Format is as under: -

Sr. No.	Details	Frequency	Quantity	Duration	Unit Cost (including all taxes, duties, levies etc, but excluding GST)	GST (in %age)	Total Unit Cost	Grand Total Price
	A	B	C	D	E	F	$G = E \times (1 + F/100)$	$H = C \times D \times G$
A. One Time Charges								
1	Design development and deployment of integrated omni-channel Complaint Handling System(CHS) and Field tracking system for DHBVN	Lumpsum	1	1				
B. Recurring charges								
B.1	Security Audit of the system	Annual	1	2				
B.2 Resources								
1	Team Lead - CHS & OMS (1 No)	Monthly	1	24				
2	Support at Call center: 24x7 on site system support and program management by interacting with field offices and headquarters 4 resource in call center (4 No., 1 person per shift + 1 Leave Reserve)	Monthly	4	24				
3	Application and Operation Support Resources	Monthly	3	24				
4	For support & Coordination with all circle offices of DHBVN.	Monthly	4	24				
B.3 Facility Management Services for each month for 2 years								
1	Cloud charges along with DBA and Data Management services.	Monthly	1	24				
2	Training @ Division level (onsite) per session on the work flow of Application and use of MIS reports as per requirement of Discom.	Per Training Session	5	1				
3	Outbound Call Charges	Per call	1,00,000	24				



4	Annual Software Subscription charges including FMS charges of all tools after completion of 1 year of software go-live	Annual	1	1				
	Total							

Note:

1. Bidder has to quote Unit rates of all items to arrive at total value of the bid
2. The bidder with lowest Total Value of the Bid shall be declared as L1 Bidder
3. The Bidder shall be paid recurring charges/monthly charges for actual months/ quantity of the work carried out
4. TDS at source will be deducted by DHBVN as per the applicable law and regulation and TDS certificate shall be issued to the Bidder by DHBVN.



FORM -4: THE PROPOSED METHODOLOGY, WORK PLAN AND CLOUD SIZING

Bidder`s Name &Address

To
CTO/ DHBVN,
Vidyut Nagar, VIDYUT SADAN, DHBVN,HISAR.

Dear Sir,

We hereby enclose a brief write up on the proposed methodology for the project

- 8.1 Approach Methodology and Work Plan in responding to scope of work and deliverables
- 8.2 Key Personnel and their Task Assignment for Completing the Assignment
- 8.3 Cloud sizing and deployment architecture with details of horizontal and vertical scaling

Authorized Signatory:Full Name:

Address:

(Seal)

FORM -5: PROFORMA FOR BANK GUARANTEE FOR CONTRACT PERFORMANCE

(TO BE STAMPED IN ACCORDANCE WITH STAMP ACT)

The non-judicial stamp paper should be in the name of issuing bank

Ref. No. Bank Guarantee No..... Date.....

To,
CTO/ DHBVN,
Vidyut Nagar, VIDYUT SADAN, DHBVN, HISAR.

Dear Sirs,

In consideration of DAKSHIN HARYANA BIJLI VITRAN NIGAM (hereinafter referred to as the 'Owner' which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/S

..... with its registered / Head office at
..... (herein after referred to as the Business Associate which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Owner's Letter of Award No.

..... dated and the same having been unequivocally accepted by the Business Associate, resulting in a Contract bearing No..... Dated Valued at For (Scope of Contract) and the Business Associate having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract equivalent to (%)..... (Percent) of the said value of the Contract to the Owner.

We (Name and Address of the Bank).

Having its Head Office at (hereinafter referred to as the 'Bank' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Owner, on demand any and all monies payable by the Business Associate to the extent of as aforesaid at any time upto (days / month / year) without any demur, reservation, contest recourse or protest and / or without any reference to the Business Associate.

Any such demand made by the owner on the Bank shall be conclusive and binding notwithstanding any difference between the owner and the Business Associate or any dispute pending before any Court, Tribunal, Arbitrator or any authority. The Bank undertakes not to revoke his guarantee during its currency without previous consent of the Owner and further agrees that the guarantee herein contained shall continue to be enforceable till the Owner discharges this guarantee.

The Owner shall have the fullest liberty without affecting in any way the liability of the Bank

under this guarantee, from time to time to extend the time for performance of the contract by the Business Associate. The Owner shall have the fullest liberty, without affecting this guarantee to postpone from time to time the exercise of any powers vested in them or any right which they might have against the Business Associate, and to exercise the same at any time in any manner and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Owner and the Business Associate or any other course or remedy or security available to the owner. The Bank shall not be released or its obligations under these presents by any exercise by the Owner of its liberty without reference in the matters aforesaid or any of them or by reason of any other Act of omission or commission on the part of the Owner or any other indulgences shown by the Owner or by any other matter or thing whatsoever which under law would but for this provision have the effect of relieving the Bank.

The Bank also agrees that the Owner at its option shall be entitled to enforce this a guarantee against the Bank as a principle debtor, in the first instance without proceeding against the Business Associate and notwithstanding any security or other guarantees the owner may have in relation to the Business Associate's liabilities.

Notwithstanding anything contained herein above our liability under this guarantee is restricted to And it shall remain in force upto and including and shall be extended from time to time for such period as may be desired by M/S On whose behalf this guarantee has been given.

Dated this Day of 2019.....at

WITNESS:

(Authorised Signatories of the Bank)

1.

.....(Signature)
.....(Signature)

.....
(Name) (Name)
.....(Official address)
(Designation with Bank Stamp)

2.

Attorney as per Power Of.....

Attorney No.

Date

Note:

- This sum shall be three percent (3% of the total Contract Price).
- The date will be Ninety days (90 days) after the end of Contract Period as specified in the Contract.
- **The stamp paper of appropriate value shall in the name of Bank issuing the guarantee.**

FORM – 06: SPECIAL INSTRUCTIONS TO BIDDERS FOR E-TENDERING

These conditions will over-rule the conditions stated in the tender documents, wherever relevant and applicable.

1. Registration of bidders on e-Procurement Portal:-
All the bidders intending to participate in the tenders processed online are required to get registered on the centralized e - Procurement Portal i.e. <http://etenders.hry.nic.in>. The bidders are also required to have/obtain Class-II or III digital signature certificate from any Certifying Authority or Sub-certifying Authority authorized by the Controller of Certifying Authorities for submission and processing of the bids. Please visit the website for more details.
 2. Download of Tender Documents:
The bidders can view and download the detailed N.I.T and the time schedule (Key Dates) for all the tenders floated through the single portal e-Procurement system on the Home Page at <http://etenders.hry.nic.in>.
 3. Pre-requisites for online bidding:
In order to bid online on the portal <http://etenders.hry.nic.in>, the user machine must be updated with the latest Java. The link for downloading latest java applet and “DC setup” Utility is available on the Home page under the tab ‘Download’ of the e-tendering Portal.
 4. Key Dates:
The bidders are strictly advised to follow date and time as indicated in the online Notice Inviting Tenders (NIT). The date and time shall be binding on all bidders. All online activities are time tracked and the system enforces time locks that ensure that no activity or transaction can take place outside the start and end dates and the time of the stage as defined in the online Notice Inviting Tenders (NIT).
 5. Bid Preparation (Technical & Financial) , Payment of Tender Document Fee, EMD fees and Submission of Bid Seal (Hash) of online Bids:
The Following are to be made by the bidder through NIC portal:-
 - a) Tender document fee of Rs. **5,900/-** with GST through Debit Cards & Internet Banking Accounts .
 - b) Earnest Money Deposit (EMD) **Rs. 5,00,000 /-** shall be submitted through online payment mode via through Debit Cards & Internet Banking Accounts and through RTGS / NEFT.
 - c) E-service fees **Rs. 1,180 /-** with GST shall be submitted through online payment mode via through Debit Cards & Internet Banking Accounts.
- 5.2 The bidders shall upload their technical offer containing documents, qualifying criteria, technical specification, schedule of deliveries, validity and all other terms and conditions except the rates (price bid). The bidder ensure that uploaded documents must be properly numbered and indexed.
The bidders shall quote the prices in price bid format in a specified template.
- 5.3 Submission of bids will be preceded by submission of the digitally signed & sealed bid (Hash) as stated in the time schedule (Key Dates) of the Tender.
- NOTE:-
1. If bidder fails to complete the Online Bid Preparation & Submission stage by the stipulated date and time, his/her bid will be not be considered.
 2. Bidders participating in online tenders shall check the validity of his/her Digital Signature Certificate before participating in the online Tenders at the portal <http://etenders.hry.nic.in>.
 3. For help manual please refer to the ‘Home Page’ of the e-Procurement website at <http://etenders.hry.nic.in>, and click on the available link ‘System Requirement’ to download the file. Help manual is available on ‘Home Page’ of the <http://etenders.hry.nic.in>.

For queries on Tenders Haryana Portal, kindly contact:-

Note- Bidders are requested to kindly mention the URL of the Portal and Tender Id in the subject while emailing any issue along with the Contact details. For any issues/ clarifications relating to the tender(s) published kindly contact the respective Tender Inviting Authority.

Tel :	0120-4200462, 0120-4001002
Mobile :	8826246593
E-Mail :	support-eproc[at]nic[dot]in
	For any technical related queries please call at 24 x 7 Help DeskNumber
	0120-4001 002
	0120-4200 462
	0120-4001 005
	0120-6277 787
	International Bidders are requested to prefix 91 as country code
	Email Support
	A) For any Issues or Clarifications relating to the published tenders,
	bidders are requested to contact the respective Tender Inviting Authority
	Technical - support-eproc(at)nic(dot)in

FORM – 7: PROFORMA OF ‘AGREEMENT’

(To be executed on non-judicial Stamp Paper)

This agreement is made on this.....day of2020 between DAKSHIN HARYANA BIJLI VITRAN NIGAM LTD.(hereinafter referred to “Owner or DHBVN which expression shall include its administrators, successors, executors and permitted assignees, Company incorporated under the Companies Act, 1956) on the one part andhaving its Registered office at.....(hereinafter referred to as “Business Associate ” or”X”name of the Contracting Company which expression shall include its administrators, successors, executors and permitted assignees) of the other part.

WHEREAS DHBVN desirous invited bids for Providing Single Window Centralized Customer Services to DHBVN Customers by Operating & Maintaining a Customer Services Call Center (CSCC) in Haryana, preferably in Delhi/NCR-Gurugram under DHBVN Jurisdiction as per NIT No.____AND WHEREAS”X”had participated in the above referred bidding vide their proposal No.....datedand awarded the contract to”X” on terms and conditions documents referred to therein, which have been accepted by”X”Resulting into a “Contract”.

NOW THEREFORE THIS DEED WITNESSETH AS UNDER :-

1. Article**1.1 Award of Contract**

DHBVN has awarded the Contract to”X” for the work of On terms and conditions contained in its letter of Award No..... dated and the documents referred to therein. The award has taken effect from aforesaid letter of Award. The terms and expressions used in this Agreement shall have the same meaning as are assigned to them in the “Contract Documents” referred to in the succeeding Article.

2. Contract Documents :**2.1** The Contract shall be performed strictly as per the terms and conditions stipulated herein and in the following documents attached herewith (hereinafter referred to as “Contract Documents”).

- i). DHBVN Bidding Documents in respect of NIT No. _____ consisting of all sections of Bidding Documents including all amendments issued on e-tendering portal
- ii). “X” is Proposal No..... Dated Along with proposal sheets, Data Requirements, Payment, Terms and Work Schedules Submitted by “X” entitled as “... ”.
- iii). DHBVN’s letter of Award No. Dated..... duly accepted by “X”.
- iv). Quality Plans for field activities entitled as Quality Plan.

All the aforesaid Contract Documents shall form an integral part of this Agreement, in so far as the same or any part of it conform to the Bidding Documents and what has been specifically agreed to by the Owner in its Letter of Award. Any matter inconsistent therewith, contrary or repugnant thereto or any deviations taken by the Business Associate in its "Proposal" but not agreed to specifically by the Business Associate. For the sake of brevity this agreement along with its aforesaid contract documents shall be referred to as the "Agreement".

3. Conditions & Covenants:

3.1 The scope of Contract, Consideration, Terms of Payment, Taxes wherever applicable, Insurance, Liquidated Damaged, Performance Guarantee and all other terms and conditions are contained in DHBVN letter of Award No..... dated

Read in conjunction with other aforesaid contract documents. The Contract shall be duly performed by the Business Associate strictly and faithfully in accordance with the terms of the Agreement.

3.2 The scope of work shall also include Design, development and deployment of all such items which are not specifically mentioned in the Contract Documents, but which are needed for successful, efficient, safe and reliable operation of the equipment unless otherwise specifically excluded in the specifications under "exclusions" or "Letter of Award".

3.3 Time Schedule:

3.1.1 Time is the essence of the contract and schedules shall be strictly adhered to and "X" shall perform the work in accordance with the agreed schedule.

3.4 Quality Plans:

3.4.1 The Business Associate shall be responsible for the proper execution of the Quality Plans. The work beyond the customer's hold points will progress only with the owner's consent. The owner will also undertake quality surveillance and quality audit of the Business Associate's / Sub-Business Associate's works, systems and procedures and quality control activities. The Business Associate further agrees that any change in the quality plan will be made only with the Owner's approval. The Business Associate shall also perform all quality control activities, inspection and tests agreed with the owner to demonstrate full compliance with the contract requirements.

- 3.4.2** The Business Associate also agrees to provide the owner with the necessary facilities for carrying out inspection, Quality audit and quality surveillance of Business Associate's activities.
- 3.4.3** The Business Associate is bound to perform the total contract in his entirety and non-performance of any part or portion of the contract shall be deemed to be a breach of the entire contract.
- 3.4.4** The Business Associate guarantees that the equipment package under the contract shall meet the ratings and performance parameters as stipulated in the technical specification and in the event of any deficiencies found in the requisite performance figures, the owner may at the opinion reject the equipment package or alternatively accept it on the terms and conditions and subject to levy of the liquidated damages so leviable shall be in accordance with the contract documents and without any limitation.
- 3.4.5** It is further agreed by the Business Associate that the contract performance guarantee shall in no way be constructed to limit or restrict the owner's right to recover the damages / compensation due to short-fall in the equipment performance figures as stated above or under any other clause of the Agreement. The amount of damages/ compensation shall be recoverable either by way of deduction from the contract price, contract performance guarantee and / or otherwise.
- The contract performance guarantee furnished by the Business Associate is irrevocable and unconditional and the Owner shall have the powers to invoke it notwithstanding any dispute or difference between the owner and the Business Associate pending before any court, tribunal, arbitrator or any other authority.
- 3.4.6** This agreement constitutes full and complete understanding between the parties and terms of the present. It shall supersede and prior correspondence terms and conditions contained in the Agreement. Any modification of the Agreement shall be effected only by a written instrument signed by the authorized representative of both the parties.
- 3.4.7** The Business Associate shall be responsible to issue a certificate that he has complied with the provisions of Industrial and labour laws including PF Act, ESI Act etc. as may be applicable.
- 3.4.8** The business associate is required to adhere to statutory requirements as per labour law & abide by the minimum wages act and other related laws

4. Settlement of Disputes:

- 4.1** It is specifically agreed by and between the parties that all the difference or disputes arising out of the Agreement or touching the subject matter or the Agreement shall be decided by the process of settlement and Arbitration. The provisions of the Indian Arbitration & Conciliation, Act, 1996 shall apply and Hisar Court alone shall have exclusive jurisdiction over the same.

4.2 Arbitration Clause:-

All matters, question, disputes, differences and/or claims arising out of and/or concerning and/or in connection and/or in consequences or relating to this Contract whether or not obligations of either of both parties under this Contract be subsisting at the time of such dispute and whether or not this Contract has been terminated or purported to be terminated or completed, shall be referred to the Sole Arbitrator to be appointed by the Managing Director, DHBVN. The arbitrator shall pass a speaking award. The Award of the Arbitrator shall be final and binding on the parties to this Contract.

Subject to aforementioned provisions, the provisions of Arbitration & Conciliation Act 1996 and the rules there under and statutory modifications thereof for the time being in force, shall apply to the Arbitration proceedings under this Clause.

(Jurisdiction: - All the litigation with respect to present contract shall be subject to Hisar Court).

4.3 Set Off:-

Any such money due and payable to the Business Associate under this Contract maybe appropriated by the Owner and set-off against any claim of the owner for the payment of a sum of money arising out of or under this contract or any other Contract entered into by the Business Associate with the Owner.

4.4 Notice of Default:

Notice of default given by either party to the other party under Agreement shall be in writing and shall be deemed to have been duly and properly served upon the parties hereto, if delivered against acknowledgment or by telex or by registered mail with acknowledgement due addressed to the signatories at the addresses mentioned herein above.

IN WITNESS WHEREOF, the parties through their duly authorized representatives have executed these presents (execution where of has been approved by the competent authorities of both the parties) on the day month and year first above mentioned at Hisar.

Witness:

1.(Owner's Signature)

Dakshin Haryana Bijli Vitran Nigam Limited

1. _____ Name & Address

2. (Designation)

(Company's Stamp)

2. _____ Name & Address

3. (Business Associate 's Signature)

(Printed Name)

4. (Partner Designation)

(Printed Name)

**FORM – 8: No Ownership Change Certificate**

(Performa for No ownership change Certificate on NJSP duly attested by Notary)

Ref: _____

Dated: _____

To

The CTO, DHBVN, Vidyut Nagar, Vidyut Sadan, Hisar. Dear Sir,

1. I*/We* have read and examined the complete documents of Bid No. _____ related to _____ (full scope of work) on turnkey basis.

2. I*/We* hereby submit that our firm M/s _____ (with complete address) would not initiate any Ownership change during the period from the time of Bid submission to the two (2) years after the commercial operation, defined as successful completion of Supply of material, erection, testing and commissioning of _____ i.e., the turnkey works as mentioned in the scope of work of Bid No. _____ and acceptance of the same by the Employer. However, in case, the firm is anticipating any such ownership change/ Takeover at any stage of the entire bid process and during the execution of Contract we would seek prior approval from the Nigam well in time. It shall be the sole discretion of the Nigam to grant permission for such change in ownership/takeover and if allowed by the Nigam for ownership change, the new company shall own all responsibilities and liabilities under the contract and the old firm should not be blacklisted by any State/ Central government or any of its agencies.

3. I*/We* hereby submit that any wrong declaration/ violation if detected/ found at any point of time shall be the sole responsibility of our firm M/s _____ (with complete address) its Owners / Inheritors / Successors / Managing Director / President etc. and shall be liable for any penalty / our blacklisting / debarring for three years or any other punishment as decided by the Nigam.

I/We also agree to abide by and fulfill all the terms, conditions & provisions of the above mentioned Bid documents.

Signature along with Seal of Company _____ (Duly authorized to sign the application on behalf of the firm)

Name: _____ Designation: _____

Name of Company: _____ (In Block Letters)

WITNESS

Signature:

Date & Postal Address:

Date: Name & Address:

Telegraphic address:

Telephone No.:



FORM – 9: No Blacklisting No Litigation Status

(Performa for No Blacklisting No Litigation Status Certificate on NJSP duly attested by Notary)(To be submitted by the bidder along with his Bid)

Ref: _____ Dated _____

To
The Chief General CTO, DHBVN, Vidyut Nagar, Vidyut Sadan, Hisar

Dear Sir,

1. I/*We* have read and examined the complete documents of NIT No. _____ related to _____ (full scope of work) on turnkey basis.

2. I/*We* hereby submit that our firm M/s _____ (with complete address) has never been 'Black-listed' / debarred by any Utility / any State / Central Govt., Department / PSUs till date nor we are facing / filed any Litigation proceedings regarding debarring (black listing) with either of the above said Agencies / States during last three years. Detection of false declaration / statement at any stage of the entire process of Bid / execution of work shall lead to penalty as deemed fit by the Nigam including forfeiture of earnest money, BG and termination of contract.

Signature along with seal of company

Date: - _____

(Duly authorized to sign the application on behalf of the firm).Name: _____
Designation: _____

Name of Company: _____ (In Block Letters)

WITNESS

Signature:

Name & Postal Address :Mobile No.

SECTION -3

CONDITIONS OF CONTRACT

1. Definition and Interpretations

1.1. Definition

In the Contract (as hereinafter defined) the following words and expressions shall have the meanings hereby assigned to them:

- 1.1.1. "Contract" means the agreement between the Employer and the Business Associate for the execution of the complete Works incorporating the Conditions, Specifications, price and other completed Schedules, Bid, Letter of Award and such further documents as may be expressly incorporated in the Letter of Award.
- 1.1.2. "Conditions" means conditions of Contract
- 1.1.3. "Commencement Date" means the date of issue of letter of intent.
- 1.1.4. "Contract Agreement" means the documents recording the terms of the Contract between the Employer and the Business Associate.
- 1.1.5. "Contract Price" means the sum stated in the Letter of Award as payable to the Business Associate for execution and commissioning of the Works and adjusted, after optimization, on the basis provided in the Contract. It shall be the sum total of all the amounts entered by the Business Associate in the Schedule of Prices.
- 1.1.6. "Business Associate" means the person whose Bid has been accepted by the Employer and the legal successors in title to the Business Associate but not (except with the consent of the Employer) any assignee of the Business Associate.
- 1.1.7. "Business Associate's Equipment" means all appliances or things of whatsoever nature required for the purposes of the Works but does not include Plant.
- 1.1.8. "Business Associate's Risk" means the risk defined in Sub-Clause
- 1.1.9. "Defects Liability Certificate" means the certificate to be issued by the Employer to the Business Associate.
- 1.1.10. "Defect Liability Period" means one year following commissioning of line on load and Taking Over during which the Business Associate is responsible for making good defects and damage.

- 1.1.11. "Employer/Owner" means the DAKSHIN HARYANA BIJLI VITRAN NIGAM and the legal successors in title to the Employer/Owner but not (Except with the consent of the Business Associate) any assignees of the Employer/Owner.
- 1.1.12. "Employer's Drawings" means all the Drawings and information provided by the Employer to the Business Associate under the Contract.
- 1.1.13. "Force Majeure" has the meaning assigned to it under Sub Clause 36.
- 1.1.14. "Gross Misconduct" means any act or omission of the Business Associate in violation of the most elementary rules of diligence which a conscientious Business Associate in the same position and under the same circumstance would have followed.
- 1.1.15. "Notification of Award/Letter of Award" means the formal award by the Employer of the Bid incorporating any adjustments or variation to the Bid agreed between the Employer and the Business Associate.
- 1.1.16. "Performance Guarantee" means the security to be provided by the Business Associate for the due performance of the Contract.
- 1.1.17. "Program" means the Program to be submitted by the Business Associate and any approved revision thereto.
- 1.1.18. "Provisional Sum" means a sum, described as such for the execution of Works or for the supply of goods or services to be used
- 1.1.19. "Risk Transfer Date" means the date when the risk of loss or damage to the Works passes from the Business Associate to the Employer.
- 1.1.20. "Schedule of Prices" means the completed price schedule or any part or individual schedule thereof, submitted by the Business Associate with his Bid and forming a part of the Contract documents.
- 1.1.21. "Site" means the place or places, where Work is to be done by the Business Associate or to which Plant is to be delivered, together with so much of the area surrounding the same as the Business Associate shall with the consent of the Employer use in connection with the Works otherwise than merely for the purposes of access.
- 1.1.22. "Specification" means the specification of the Works included in Bidding Documents and includes the Contract and any modification thereof.

- 1.1.23. "Taking-over Certificate" means the Certificate to be given by the Engineer to the Business Associate in accordance with Clause-22.
- 1.1.24. "Bid" means the Business Associate's priced offer to the Employer for the execution of the Works.
- 1.1.25. "Tests on Completion" means the test specified in the Contract or otherwise agreed by the Employer and the Business Associate to be performed before the Works are taken over by the Employer.
- 1.1.26. "Time for Completion" means the time stated in the conditions of Contract for completing the Works or any Part thereof and passing the tests on completion calculated from the commencement date unless extended.
- 1.1.27. "Variation Order" means any written order, identified as such issued to the Business Associate by the Employer.
- 1.1.28. "Works" means work to be done by the Business Associate under the Contract.
- 1.1.29. "Government" means the Government of India/Government of Haryana.
- 1.1.30. "Other Business Associate " means any party or parties having a direct Contract with the Employer for Work outside the scope of this Contract and shall include any Sub-Business Associate of this "Other Business Associate"
- 1.1.31. "Engineer" means Assistant Engineer/ Assistant Executive Engineer, Executive Engineer, DHBVN appointed by the Employer for this Work.
- 1.1.32. "Sub Business Associate": The Sub-Business Associate used herein refers to a party or parties having a direct Contract with the Business Associate, whom any part of the Contract has been sublet by the Business Associate with the consent in writing of the Engineer-in-charge.
- 1.1.33. "**Engineer-in-charge**" i.e. CTO/DHBVN is the person under whose supervision the project shall be executed. He will identify the Engineer/ Executive Engineer who will be directly responsible for the execution of Works, measurement and verification of bills for payments. In the present NIT, CTO/DHBVN shall be the Nodal officer under whose jurisdiction the work falls. (Nigam reserves the right to amend the nodal officer at any time during the contract period)
- 1.2. **Written Communication**
Wherever in the Contract provision is made for communication to be "Written" or "in Writing" this means any hand-written, type written or printed communication including telex, cable and facsimile transmission addressed to the Engineer-in- Charge, Engineer or other agencies of the Owner, involved in execution of the Contract.

1.3. **Notice, Consent and approvals**

Wherever in the Contract provision is made for the giving of notice, consent or approval by any person, such consent or approval shall not be unreasonably withheld. Unless otherwise specified, such notice, consent or approval shall be in writing and the word “notify” shall be construed accordingly. Engineer-in-charge shall be Nodal Officer in this respect. He may delegate his powers to the subordinate officer wherever required. All such letter and notices shall be addressed by the Business Associate to the Engineer-in-charge as required with a copy to Chief Engineer/Commercial. However, routine correspondence may be exchanged by him with the Engineer with a copy to Engineer-in-charge.

2. **Employer’s Decisions and Instructions**

2.1. The Business Associate shall proceed with the decisions and instructions given by the Employer or its representative in accordance with these conditions.

2.2. **Confirmation in Writing**

The Business Associate may require the Employer to confirm in writing any decision or instruction of the Employer which is not in writing. The Business Associate shall notify the Employer of such requirement without undue delay. Such a decision or instruction shall not be effective until written confirmation thereof has been received by the Business Associate from Superintending Engineer / Operation Circle Concerned or the Engineer identified by him/provided in the Contract.

3. **Assignment**

The Business Associate shall not assign the Contract or any part of his obligations under the Contract without the prior written consent of the Employer (Which shall not be unreasonably withheld). A charge in favour of the Business Associate’s bankers of any monies due under the Contract shall not be considered an assignment.

4. **Sub Contracting**

4.1. Not Allowed

5. **Contract documents**

5.1. Ruling Language

Where versions of the Contract are prepared in different languages, the English version shall prevail.

5.2. Day to Day Communications

The day to day communications shall be in English Language only.

5.3. Priority of Contract Document

Unless otherwise provided in the Contract, the Contract documents shall be as follows in order of priority:-

- 5.3.1. The letter of Award.
- 5.3.2. Conditions of Contract.
- 5.3.3. Bidder's Priced Offer.
- 5.3.4. Any other documents forming part of the Contract.

5.4. Documents Mutually Explanatory.

Subject to Sub Clause 5.3, the Contract documents shall be taken as mutually explanatory. The Employer shall clarify any ambiguities or discrepancies.

6. Obligation of the Business Associate.**6.1. General Obligations**

- a. Business Associate shall have qualified managers & supervisors with adequate experience in execution of works/ providing services at the site/back end for satisfactory progress and successful execution of the work. The Business Associate shall employ on the execution of the works only such person as are skilled and experienced in their respective trades. The DHBVN shall have full power at all times to object the employment of any employee not suitable for the work by the Business Associate and if the Business Associate shall receive notice in writing from the DHBVN requesting the removal of any such men or man from the work, Business Associate is to comply with the request forthwith. No such employee after his removal from the work by request of the DHBVN shall be re-employed or reinstated on the work by the Business Associate at any time except with the prior approval in writing of the DHBVN.
- b. BA shall not pay less wages than mandated by the Ministry of labor, Govt of Haryana, at any time during course of execution of work to its employees. In case of noncompliance, contract agreement can be terminated by DHBVN at Bidders fault with forfeiture of PBG.
- c. BA shall acknowledge surety, security & privacy of the client's business data & other departments proprietary information or materials, whether developed by department or being used by department pursuant to a license agreement with a third party (the foregoing collectively referred to herein as "proprietary information") are confidential & proprietary to user department.

7. Program

Within the time stated in the Contract Data the Business Associate shall submit to the Engineer for approval a Program showing the general methods, arrangement, order and timing for all the activities in the Works.

8. Business Associate's Representative.

Objection to Business Associate's Employee

The Business Associate shall, upon the Employer's written instruction remove from the Works any person employed by him in the execution of Works, who mis-conducts himself or is incompetent or negligent.

9. Compliance with Laws**9.1 Compliance with Statutes, Regulations**

The Business Associate shall, in all matters arising in the performance of the Contract, comply in all respects with, give all notices and pay all fees required by the provisions of any national or state statute, ordinance or other law or any regulation or by-law of any duly constituted authority.

The Contract shall in all respects be prepared and interpreted in accordance with the laws in force in India, including any such laws passed or made or coming into force during the period of the Contract.

The Business Associate shall be fully responsible for deducting the P.F. of the employees/labour Working under him as per statutory regulations and depositing the same with the concerned authorities.

9.2 Compliance with Laws

The Business Associate shall comply with the laws of India for work under the contract

10. Labour

The Business Associate shall, follow Business Associate's Labour Regulation as applicable for HARYANA PUBLIC WORKS DEPARTMENTS

10.1 Issue of Certificate of Payment

Within 21 days after receiving an application for payment, which the Business Associate was entitled, the Employer shall issue a certificate of payment to the Business Associate showing the amount due. A certificate of payment, other than Final Certificate of payment, shall not be withheld on account of any part of the payment applied for being disputed. In such case a certificate of payment for the undisputed amount shall be issued.

10.2 Corrections to Certificates of Payment

The Employer may in any certificate of payment make any correction or modification that should have been properly made in respect of any previous certificates.

10.3 Payment

The Employer shall pay the amount certified on 30th days from the date of issue of each certificate of payment to the Business Associate at his principal place of business.

10.4 Application for Final Certificate of Payment

The application for the Final Certificate of payment shall be accompanied by the final account prepared by the Business Associate and reconciled with the Employer. The final account shall give full details of the value of Work done under the Contract together with: -

- a) Such additions to or deductions from the Contract price as have been agreed, and
- b) All claims for additional payment to which the Business Associate may consider himself entitled.

10.5 Issue of Final Certificate of Payment

The Employer shall issue to the Business Associate, the Final Certificate of Payment within 30 days after receiving an application. If the Business Associate has not applied for a Final Certificate of Payment within the time specified, the Employer shall request the Business Associate to do so within a further period of 30 days. If the Business Associate fails to make such an application, the Employer shall issue the Final Certificate of Payment for such amount, as he deems correct.

10.6 Final Certificate of Payment conclusive.

A Final Certificate of Payments shall be conclusive evidence of the value of the Works, that the Works are in accordance with the Contract and that the Business Associate has performed all his obligations under the Contract except the obligations arising during the Defects Liability Period. Payment of the amount certified in the Final Certificate of Payment shall be conclusive evidence that the Employer has performed all his obligations under the Contract. A Final Certificate of payment or payments shall not be conclusive:

- a) To the extent that fraud or dishonesty relates to or affects any matter dealt within the certificate, or
- b) If any arbitration or court proceedings under the Contract have been commenced by either party before the expiry of 90 days after the issue of the Final Certificate of Payment.
- c) In the event of any defects being noticed during the Defects Liability Period.

11.1 Procedure

In any case where under these conditions there are circumstances which the Business Associate considers entitle him to claim additional payment, the Business Associate shall:-

- a) If he intends to make any claim for additional payment he will give to the Employer notice of his intention to make such claim within 30 days after the said circumstances became known to the Business Associate stating the reasons for his claim, and
- b) As soon as reasonably practical, after the date of such notice shall submit to the Employer full and detailed particulars of his claim but not later than 45 days after such notice unless otherwise agreed by the Employer. In any event such particulars shall be submitted no later than the application for the Final Certificate of Payment. The Business Associate shall thereafter promptly submit such further particulars as the Employer may reasonably require assessing the validity of the claim.

11.2 Assessment

When the Employer has received full and detailed particulars of the Business Associate's claim and such further particulars as he may reasonably have required, he shall after due consultation with the Business Associate determine whether the Business Associate is entitled to additional payment and notify him accordingly.

The Employer may reject any claim for additional payment which does not comply with the requirements in accordance to above clause.

12. Currency and Rates of Exchange.

All payments shall be made in Indian Rupees only.

13. Set Off

Any such money due and payable to the Business Associate under the Contract may be appropriated by the Owner and set-off against any claim of the Owner for the payment of a sum of money arising out of or under this Contract or any other Contract entered into by the Business Associate with the Owner.

14.0 Limitations of Liability**14.1 Liability after Expiry of Defect Liability Period.**

Except in cases of criminal negligence or willful misconduct:-

- a) The Business Associate shall not be liable to the Employer, whether in Contract, or otherwise for any indirect or consequential loss or damage, provided that this execution shall not apply to any obligation of the Business Associate to pay liquidated damages to the Employer.
- b) The aggregate liability of the Business Associate to the Employer under the Contract shall not exceed the Contract price, provided that this limitation shall not apply to any obligation of the Business Associate to indemnify the Employer with respect to patent infringement.

14.2 Exclusive Remedies

The Employer and the Business Associate intend that their respective rights, obligations and liabilities as provided for in these conditions shall alone govern their rights under the Contract and in relation to the Works.

Accordingly, the remedies provided under the Contract in respect of or in consequence of :-

- a) Any breach of Contract, or
- b) Any act of negligence or omission, or
- c) Death or personal injury, or
- d) Loss or damage to any property.

are, save in the case of Gross Misconduct, to be to the exclusion of any other remedy that either may have against the other under the law governing the Contract or otherwise.

14.3 Mitigation of loss or Damage

In all case the party claiming a breach of Contract or a right to be indemnified in accordance with the Contract shall be obliged to take all reasonable measures to mitigate the loss or damage which has occurred or may occur.

15 Force Majeure.**15.1 Definition of Force Majeure.**

Force Majeure means any circumstances beyond the control of the parties including:

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- a) War and other hostilities, (whether war be declared or not), invasion, act of foreign enemies, mobilization, requisition or embargo;
- b) Ionizing radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive, or other hazardous properties of any explosive nuclear assembly or nuclear components thereof;
- c) Rebellion, revolution, insurrection, military or usurped power and civil war;
- d) Riot, commotion or disorder, except where solely restricted to employees of the Business Associate.
- e) Natural calamity (such as Earthquake, Cyclone, Floods etc.).

15.2 Effect of Force Majeure.

Neither party shall be considered to be in default or in breach of his obligations under the Contract to the extent that performance of such obligations is prevented by any circumstances of Force Majeure which arise after the date of the Notification of Award.

15.3 Notice of Occurrence.

If either party considers that any circumstances of Force Majeure have occurred which may affect performance of his obligations he shall promptly notify the other party.

15.4 Performance to Continue.

Upon the occurrence of any circumstances of Force Majeure the Business Associate shall endeavor to continue to perform his obligations under the Contract so far as reasonably practicable. The Business Associate shall notify the Employer of the steps he proposes to take including any reasonable alternative means for performance, which is not prevented by Force Majeure. The Business Associate shall not take any such steps unless directed so to do by the Employer.

15.5 Additional Costs caused by Force Majeure.

If the Business Associate incurs additional costs in complying with the Employer's directions, the amount thereof shall be certified by the Employer and added to the Contract Price.

15.6 Termination in Consequence of Force Majeure.

If circumstances of Force Majeure have occurred and shall continue for a period of 180 days, notwithstanding, the Business Associate may by reason thereof, having been granted an extension of Time for Completion of the Works, either party shall be entitled to serve upon the other, 30 days' notice to terminate the Contract. If at the expiry of the period of 30 days Force Majeure shall still continue, the Contract shall terminate.

15.7 Payment on Termination for Force Majeure.

If the Contract is terminated the Business Associate shall be paid the value of the Work done.

The Business Associate shall also be entitled to receive: -

The amounts payable in respect of any preliminary items so far as the Work or service comprised therein has been carried out and delivered and a proper proportion of any such item in which the Work or service comprised has only been partially carried out and delivered.

16 Business Associate's Default**16.1 Notice of Default.**

If the Business Associate is not executing the Works in accordance with the Contractor is neglecting to perform his obligations, there under, as seriously, to affect the Program for carrying out of the Works, the Employer may give notice to the Business Associate requiring him to make good such failure or neglect.

16.2 Nature of Business Associate's default.

If the Business Associate:-

- a) Has failed to comply within a reasonable time with a notice
- b) Assigns the Contract or Sub-Contracts the whole of the Works without the Employer's written consent, or
- c) Becomes bankrupt or insolvent, has a receiving order made against him or compounds with his creditors, or carries on business under a receiver, trustee or manager for the benefit of his creditors or goes into liquidation.

The Employer may, after giving 15 days notice to the Business Associate, terminate the Contract and expel the Business Associate from the Site.

Any such expulsion and termination shall be without prejudice to any other rights or powers of the Employer, or the Business Associate under the Contract. The Employer may upon such termination complete the Works himself or by any other Business Associate.

16.3 Valuation at Date of Termination

The Employer shall, as soon as possible after such termination, certify the value of the Works and all sum then due to Business Associate as at the date of termination.

17 Employer's Default**17.1 Nature of Employer's Default**

The Business Associate may, by giving 30 days notice to the Employer, terminate the Contract if the Employer becomes bankrupt or insolvent, has a receiving order made against him, compounds with his creditor, or carries on business under a receiver, trustee or manager for the benefit of his creditors or goes into liquidation, or

17.2 Payment on termination for Employer's Default.

In the event of such termination the Employer shall pay the Business Associate a sum payable for the work done by the firm up to termination date.

18 Notices**18.1 Notice to Business Associate**

All certificates, notices or written order communications to be given to the Business Associate by the Employer under the conditions shall be sent by Airmail, Cable, telex, Regd. Post or facsimile transmission, to or be left at the Business Associate's principal place of business or such other address as the Business Associate shall notify for that purpose, or may be handed over to the Business Associate's representative under acknowledgement.

18.2 Notices to Employer

Any notice to be given to the Employer under these conditions shall be sent by Airmail, Regd. Post, cable, telex or facsimile transmission to or left at the respective address notified for that purpose in the letter of award, or handed over to the Employer's representative, authorized, to receive it.

18.3 Minutes of meeting

Instructions or notice to the Business Associate and notice from the Business Associate to the Employer record in a minute or protocol signed by the authorized representative of the given and of the recipient of such notice or instruction shall be valid notice or instruction for the purposes of the Contract.

19. TERMINATION FOR DEFAULT

19.1 The DHBVN, may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the agency, terminate this contract in whole or in part.

- a) if the agency fails to deliver any or all the goods within the time period (s) specified in the contract, or any extension thereof granted by the DHBVN.
- b) if the agency fails to perform any other obligation(s) under the contract; and
- c) if the agency, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as the DHBVN may authorize in writing) after receipt of the default notice from the DHBVN.
- d) On a notice period of 30 days.

19.2 In the event the DHBVN terminates the contract in whole or in part pursuant to above para the DHBVN may take/procure, upon such terms and in such manner as it deems appropriate, services / goods similar to those undelivered and the agency shall be liable to the DHBVN for any excess cost for such similar services / goods. However, the agency shall continue the performance of the contract to the extent not terminated.

20. TERMINATION FOR INSOLVENCY

The DHBVN may at any time terminate the Contract by giving written notice to the agency, without compensation to the agency if the agency becomes bankrupt or otherwise insolvent as declared by the competent court provided that such termination will not prejudice or effect any right of action or remedy which has accrued or will accrue thereafter to the DHBVN.

21. Termination for Convenience:

- (a) DHBVN, by Notice sent to agency may terminate the Contract, in whole or in part, at any time for its convenience. The Notice of termination shall specify that termination is for the DHBVN convenience, the extent to which performance of agency under the Contract is terminated, and the date upon which such termination becomes effective.
 - (b) The services/goods those are complete and completion of work within twenty-eight (28) days after agency receipt of the Notice of termination shall be accepted by the DHBVN at the Contract terms and prices. For the remaining Goods/services, the DHBVN may elect:
 - (i) To have any portion of work/services completed and delivered at the Contract terms and prices; and/or
 - (ii) To cancel the remainder and pay to agency an agreed amount for partially completed Goods/services and Related Services and for materials and parts previously taken/procured by agency.
- 22.** The agency should prepare and present a detailed exit plan within five calendar days of termination notice receipt to DHBVN ("Exit Plan").
- 23.** The Nodal Officer or any other person designated by DHBVN and along with designated team will review the Exit plan. If approved, the firm shall start working on the same immediately. If the plan is rejected, the firm shall prepare alternate plan within two calendar days. If the second plan is also rejected, the DHBVN will provide a plan for the firm and it should be adhered to in totality.
- a. The Exit Plan should cover at least the following :-
 - i. Execute all documents that may be necessary to effectively transfer the ownership and title, including OEM warranties in respect of all equipment;
 - ii. Handover all developed codes, related documentation and other Configurable Items, if any in his possession;
 - iii. Handover the list of all IT Assets, passwords at all locations to DHBVN.
 - b. The firm and DHBVN will sign a completion certificate at the end of successful completion (all points tracked to closure) of the Exit Plan.

24. Taxation

- a. The Business Associate shall be entirely responsible for payment of all taxes, duties, license fees etc. incurred until delivery of the Contract supplies to the Employer.
- b. The Business Associate shall be solely responsible for the taxes that may be levied on the Business Associate's persons or on earning of any of his employee and shall hold the Employer indemnified and harmless against any claims that may be made against the Employer. The Employer does not take any responsibility whatsoever regarding taxes under Income Tax Act, for the Business Associate or his employees. If it is obligatory under the provisions under the Indian Tax Act, deduction of Income Tax at source shall be made by the Employer.

25. Advertising

Any advertising stating the subject of this Contract by the Business Associate in India or in other foreign countries shall be subject to approval of the Employer prior to the publication.

Publication of approved articles, photographs and other similar materials shall carry approval of the Employer.

26. Industrial & Labour Laws

The successful bidder will certify that he has complied with the provisions of Industrial & Labour Laws including PF Act, ESI Act etc. as may be applicable.

27. Corrupt or fraudulent practices

The Nigam requires that Business Associate observe the highest standard of ethics during the procurement and execution of Nigam contracts. In pursuance of this policy, the Nigam:-

(a) defines, for the purposes of this provision, the terms set forth as follows:

- (i) “corrupt practice” means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution: and
- (ii) “fraudulent practice” means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Nigam, and includes collusive practice among tenderer (prior to or after tender submission) designed to establish tender prices at artificial, non-competitive levels and to deprive the Nigam of the benefits of free and open competition;

(b) will reject a proposal for award if it determines that the Tenderer recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;

(c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a Nigam contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing, a Nigam contract.

28. Settlement of Disputes

- a. Any dispute(s) or difference(s) arising out of or in connection with the Contract shall, to the extent possible, be settled amicably between the parties.
- b. If any dispute or difference of any kind whatsoever shall arise between the Owner and the Business Associate, arising out of the Contract for the performance of the Works whether during the progress for the Works or after its completion or whether before or after the termination, abandonment or breach of the Contract, it shall, in the first place, be referred to and settled by the empowered officer to be appointed by the Owner, who, within a period of thirty (30) days after being requested by either party to do so, shall give written notice of his decision to the Owner and the Business Associate.
- c. Unless as hereinafter provided, such decision in respect of any matter so referred shall be final and binding upon the parties until the completion of the Works and shall forthwith be given effect to by the Business Associate who shall proceed with the Works with all due diligence, whether he or the Owner required arbitration as hereinafter provided or not.
- d. If after the Empowered Officer has given written notice of his decision to the parties, no claim to arbitration has been communicated to him by either party within thirty (30) days from the receipt of such notice, the said decision shall become final and binding on the parties.
- e. In the event of the Empowered Officer failing to notify his decision as aforesaid within thirty (30) days after being requested aforesaid, or in the event of either the Owner or the Business Associate being dissatisfied with any such decision, or within thirty (30) days after the expiry of the first mentioned period of thirty (30) days, as the case may be either party may require that the matters in dispute be referred to arbitration as hereinafter provided.

29. Arbitration:

All matters, question, disputes, differences and/or claims arising out of and/ or concerning and/or in connection and/or in consequences or relating to this Contract whether or not obligations of either of both parties under this Contract be subsisting at the time of such dispute and whether or not this Contract has been terminated or purported to be terminated or completed, shall be referred to the Sole Arbitration of the MD, DHBVN or an Officer appointed by the MD, DHBVN as his nominee. The Award of the Arbitrator shall be final and binding on the parties to this Contract. Subject to aforementioned provisions, the provisions of Arbitration & Conciliation Act 1996 and the rules there under and statutory modifications thereof for the time being in force, shall be deemed to apply to the Arbitration proceedings under this Clause.

30. Jurisdiction of the Court

Hisar court in DHBVN shall have exclusive jurisdiction to decide any dispute arising out of or in the contract.

N.B. The terms and conditions are being regulated by the "Procurement Manual of DHBVN" and its amendments thereof. The terms and conditions provided in the tender documents are exhaustive in nature, however in case of any discrepancy, the regulations as provided in the Procurement Manual / its amendments thereof shall be followed. The bidders are expected to acquaint themselves with the regulations as provided in the Procurement Manual which is available on the web site www.DHBVN.org.in

